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General Assembly
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Official Records

52nd plenary meeting
Thursday, 12 December 2024, 10 a.m.
New York

President: Mr. Yang .....(Cameroon)

In the absence of the President, Mr. Chaivaivid (Thailand), Vice-President, took the Chair.

The meeting was called to order at 10 a.m.

Programme of work

The Acting President: I would like to draw the attention of members to the date of recess of the current session. Members will recall that, in its decision 79/504 of 26 November 2024 (see A/79/PV.42), the General Assembly approved the extension of the work of the Fifth Committee until Friday, 13 December 2024 and decided to postpone the date of the recess of the main part of the seventy-ninth session to Thursday, 19 December 2024.

However, I have since been informed by the Chair of the Fifth Committee that the Committee requests a further extension of its work to Friday, 20 of December 2024, in view of the fact that such an extension would facilitate a comprehensive consideration of the agenda items before it.

In that connection and in view of the work that remains to be completed for this part of the session, may I take it that the Assembly agrees to postpone the date of recess to Monday, 23 December 2024?

It was so decided.

The Acting President: May I also take it that the General Assembly agrees to extend the work of the Fifth Committee until Friday, 20 December 2024?

It was so decided.

Agenda item 13 (*continued*)

Integrated and coordinated implementation of and follow-up to the outcomes of the major United Nations conferences and summits in the economic, social and related fields

This record contains the text of speeches delivered in English and of the translation of speeches delivered in other languages. The final text will be printed in the *Official Records of the Security Council*. Corrections should be submitted to the original languages only. They should be incorporated in a copy of the record and sent under the signature of a member of the delegation concerned to the Chief of the Verbatim Reporting Service, room AB-0928 (verbatimrecords@un.org). Corrected records will be reissued electronically on the Official Document System of the United Nations (http://documents.un.org).

Draft resolutions (A/79/L.39 and A/79/L.40)

The Acting President: I now give the floor to the representative of Indonesia to introduce draft resolution A/79/L.39.

Mr. Prabowo (Indonesia): Lakes are a feature of nature that is perhaps most often overlooked. Many of us do not realize that while lakes cover only around 3 per cent of our planet, they hold nearly 90 per cent of the world's surface fresh water, making them essential for drinking water, health and sanitation, agriculture, fisheries, power generation, tourism and even cultural identity and for advancing social, environmental and economic progress in many communities across the world. Indeed, lakes play a fundamental role in achieving the Sustainable Development Goals.

Unfortunately, lake environments are deteriorating globally, both in quality and in quantity. More than half of the world's largest lakes are shrinking and a quarter of the world's population, or 2 billion people, now live in the basin of a dying lake. We should not take that natural gem for granted, and we should start to make serious efforts to raise global awareness and enhance actions to strengthen sustainable lake management. That is one of the commitments achieved at the World Water Forum 2024, held in Bali, Indonesia, in May.

In that spirit, Indonesia is honoured to propose the establishment of World Lake Day so that we can collectively raise global awareness of the importance of lakes as freshwater resources in all their significance, including their essential role in supporting human livelihoods, biodiversity and ecosystem resilience.

It therefore gives me great honour to introduce the draft resolution on World Lake Day to the General Assembly, as contained in document A/79/L.39, under agenda item 13, and to invite this plenary to support and endorse the draft resolution. Through the draft resolution, we are committed to designating 27 August as World Lake Day, which was the date of the first World Lake Conference in 1984.

We have every confidence that, moving forward, World Lake Day will cement our collective resolve to continuously advance stronger cooperation and concrete actions to ensure sustainable lake management. In doing so, the draft resolution also reinforces key global efforts such as the Ramsar Convention on Wetlands of International Importance especially as Waterfowl Habitat, the World Lake Conference, United Nations Environment Assembly resolution 5/4 on sustainable lake management and the Ministerial Declaration of the tenth World Water Forum, ensuring a broader impact for people worldwide.

Allow me to take this opportunity to express my heartfelt appreciation to all Member States for their support and constructive engagement throughout the negotiation process and to thank all sponsors of the draft resolution. I also thank the United Nations Environment Programme for its continued support, including its commitment to leading the implementation of the draft resolution.

The draft resolution is an affirmation of our collective commitment to safeguarding lakes, and thereby the world's environment and sustainable livelihoods. I invite Member States that have not yet done so to co-sponsor the draft resolution and all representatives to support its adoption by consensus.

The Acting President: I now give the floor to the representative of Kyrgyzstan to introduce draft resolution A/79/L.40.

Mrs. Kasymalieva (Kyrgyzstan): On behalf of the core group of Bhutan, China, India, Kazakhstan, Mongolia, Nepal, Pakistan, the Russian Federation, Tajikistan, Uzbekistan and my own country, Kyrgyzstan, I am honoured to present draft resolution A/79/L.40, entitled "International Day of the Snow Leopard".

The snow leopard is an iconic species of large cat native to the high mountain ranges of Central and South Asia. Classified as “vulnerable” on the International Union for Conservation of Nature Red List of Threatened Species, it faces grave threats, including poaching, illegal wildlife trade and habitat destruction, often driven by infrastructure development. That magnificent species is critical to the biodiversity of mountain ecosystems, playing a vital role in regulating prey populations and serving as an indicator of ecosystem health. Yet, its survival is increasingly in peril. Snow leopards are hunted for their strikingly beautiful coats, their bones and other body parts are exploited in traditional medicine. Climate change exacerbates those threats, causing habitat loss, fragmentation and range shifts, further endangering an already vulnerable species.

The proposal for the draft resolution to declare the International Day of the Snow Leopard marks a significant step in galvanizing efforts to protect that majestic species. Conserving the snow leopard is not merely an ecological imperative for maintaining the balance of mountain ecosystems; it also has significant economic potential. Conservation can foster sustainable tourism and generate livelihoods for local communities, creating a virtuous cycle of ecological and economic benefits. An international day of the snow leopard would provide a dedicated global platform to raise awareness of the critical importance of protecting the species, highlight its ecological and cultural value and inspire concerted actions to address the challenges it faces.

This observance aligns with the 2030 Agenda for Sustainable Development and supports the goals of the United Nations Decade on Ecosystem Restoration for the period of 2021–2030. It not only emphasizes the urgent need for snow leopard conservation but also reinforces the broad imperative of preserving ecosystems and biodiversity for the well-being of future generations. It is also in line with the implementation of the General Assembly’s resolutions on sustainable mountain development and the Five Years of Action for the Development of Mountain Regions (2023–2027) initiative. We propose 23 October as the annual date for the observance. The date commemorates the adoption of the Bishkek Declaration at the Global Snow Leopard Conservation Forum, held in Bishkek in 2013, a landmark moment in international efforts to protect this species.

I am also pleased to announce that Kyrgyzstan is in the process of establishing a conservation of nature and mountain ecosystem trust fund. That strategic initiative is aimed at mobilizing financial resources for nature conservation and climate-resilience projects, including efforts to protect the snow leopard and its habitat. The trust fund will enable dedicated long-term funding streams for conservation and green development, leveraging innovative mechanisms such as debt-for-climate swaps. It will be launched through the United Nations Multi-Partner Trust Fund Office, and we aim to operationalize it by early 2025. I invite all our partners to collaborate in supporting the initiative, which represents a significant step forward in global efforts to protect biodiversity and enhance climate resilience.

In conclusion, I extend my gratitude to the countries that have co-sponsored the draft resolution. I encourage others to co-sponsor this important initiative. Together, we can ensure that the snow leopard, a symbol of our shared responsibility for nature, will continue to thrive for generations to come.

The Acting President: We shall now proceed to consider draft resolutions A/29/L.39 and A/29/L.40.

I give the floor to the representative of the Secretariat.

Mr. Nakano (Department for General Assembly and Conference Management): I wish to address the additional co-sponsorships of both draft resolutions, starting with A/79/L.39.

Since the submission of draft resolution A/79/L.39 and in addition to the delegations listed in the document, the following countries have also become co-sponsors: Albania, Andorra, Angola, Armenia, Austria, Bangladesh, Belarus, Bosnia and Herzegovina, Bhutan, Bulgaria, Burkina Faso, Burundi, Chile, China, the Democratic Republic of the Congo, Djibouti, the Dominican Republic, El Salvador, Finland, Gabon, Germany, Hungary, Iraq, the Islamic Republic of Iran, Japan, Jordan, Kenya, Kuwait the Lao People's Democratic Republic, Latvia, Lebanon, Madagascar, Malaysia, Mauritania, the Federated States of Micronesia, Mongolia, Montenegro, Morocco, Myanmar, Nepal, the Kingdom of the Netherlands, Nicaragua, Palau, Peru, Portugal, Qatar, Saint Lucia, Senegal, Serbia, Slovakia, Slovenia, Suriname, Thailand, Timor-Leste, Togo, Tunisia, Turkmenistan and Uganda.

Since the submission of draft resolution A/79/L.40, and, in addition to the delegations listed in the document, the following countries have also become co-sponsors: Andorra, Armenia, Austria, Bahrain, Bangladesh, Belarus, the Plurinational State of Bolivia, Bosnia and Herzegovina, Botswana, Cambodia, Chile, Cuba, Eritrea, Georgia, Germany, Greece, Grenada, Guyana, Honduras, Hungary, Indonesia, the Islamic Republic of Iran, Jordan, Kuwait, the Lao People's Democratic Republic, Lebanon, Lesotho, Libya, Madagascar, Malaysia, the Federated States of Micronesia, Montenegro Morocco, Nicaragua, the Philippines, Portugal, Saudi Arabia, Senegal, Serbia, Singapore, Suriname, Thailand, Tunisia, Türkiye, the Bolivarian Republic of Venezuela and Viet Nam.

The Acting President: The Assembly will now take a decision on draft resolution A/79/L.39, entitled "World Lake Day".

May I take it that the Assembly decides to adopt draft resolution A/79/L.39?

Draft resolution A/79/L.39 was adopted (resolution 79/142).

The Acting President: The Assembly will now take a decision on draft resolution A/79/L.40, entitled "International Day of the Snow Leopard".

May I take it that the Assembly decides to adopt draft resolution A/79/L.40?

Draft resolution A/79/L.40 was adopted (resolution 79/143).

The Acting President: Before giving the floor for explanations of position, may I remind delegations that explanations of vote are limited to 10 minutes and should be made by delegations from their seats.

Mr. Nicolino (Argentina) (*spoke in Spanish*): The Argentine delegation appreciates the work of the delegations of Indonesia in facilitating resolution 79/142 and of Kyrgyzstan in facilitating resolution 79/143. At the same time, the Argentine Republic wishes to state that the 2030 Agenda for Sustainable Development comprises non-legally binding aspirations that each State, in the exercise of its sovereignty, has the right to freely interpret and pursue.

In that respect, the Argentine Republic reserves its national position on those paragraphs that refer to the 2030 Agenda for Sustainable Development and its Sustainable Development Goals in both resolutions and, in particular, in the second, fourth, seventh and tenth preambular paragraphs of resolution 79/142 and the first preambular paragraph of resolution 79/143.

The Acting President: The Assembly has thus concluded this stage of its consideration of agenda item 13.

Agenda item 75 (continued)

Oceans and the law of the sea

(a) Oceans and the law of the sea

Reports of the Secretary-General (A/79/68 and A/79/340)

Report on the work of the United Nations Open-ended Informal Consultative Process on Oceans and the Law of the Sea at its twenty-fourth meeting (A/79/207)

Reports on the work of the Ad Hoc Working Group of the Whole on the Regular Process for Global Reporting and Assessment of the State of the Marine Environment, including Socioeconomic Aspects (A/79/70 and A/79/238)

Draft resolution (A/79/L.37)

(b) Sustainable fisheries, including through the 1995 Agreement for the Implementation of the Provisions of the United Nations Convention on the Law of the Sea of 10 December 1982 relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks, and related instruments

Draft resolution (A/79/L.38)

(c) Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction

The Acting President: I now give the floor to the representative of Singapore to introduce draft resolution A/39/L.37.

Mr. Gafoor (Singapore): The General Assembly has before it one of the most important annual draft resolutions, namely, the draft on “Oceans and the law of the sea”, also known as the oceans omnibus draft resolution (A/79/L.37). The draft resolution comprehensively covers key issues, developments and activities pertaining to ocean affairs and the law of the sea. It is founded on the United Nations Convention on the Law of the Sea (UNCLOS), also known as the constitution for the oceans. Every year, this text reaffirms the status of the Convention as setting out the legal framework within which all activities in the oceans and seas must be carried out.

Singapore was honoured to serve as the coordinator for the informal consultations on draft resolution A/79/L.37. I am pleased to introduce the draft resolution on behalf of my colleague, Ms. Natalie Morris-Sharma, who served as the coordinator. I thank her for her hard work and leadership in facilitating the discussions on this important draft resolution.

The draft resolution was negotiated in informal consultations that took place in late September to early October and also stretched into November. The informal consultations continued to serve as a space for delegations to receive, consider and discuss each other’s positions and proposals, enabling the building of better understanding while working towards consensus in the consultations. Many paragraphs of the draft resolution — and this draft has more than 400 paragraphs, both preambular and operative — were updated and adjusted, demonstrating the continuing strong interest of Member States in the omnibus draft resolution.

The following are some of the key matters addressed in this year’s draft resolution, generally in the order that they appear in the text of the draft.

First, the draft resolution reaffirms the universal and unified character of UNCLOS. It further notes, with satisfaction, that 16 November 2024 marked the thirtieth anniversary of the entry into force of UNCLOS, and that this year's Meeting of States Parties to the Convention commemorated its anniversary.

Secondly, the draft resolution recognizes the importance of capacity-building and of assisting developing States in implementing the Convention. The draft resolution encourages continued coordination and cooperation on ocean issues.

Thirdly, the draft resolution pays tribute to the significant roles of the International Tribunal for the Law of the Sea and the International Court of Justice in the peaceful settlement of disputes concerning the law of the sea and takes note of the advisory opinion on climate change and international law rendered by the Tribunal this year. The draft resolution also notes and welcomes the work of the International Seabed Authority and of the Commission on the Limits of the Continental Shelf.

Fourthly, the draft resolution acknowledges key issues and developments in respect of maritime safety and security, the marine environment and marine resources, marine biodiversity, and marine science. On marine biodiversity, the draft resolution recalls resolutions 77/321 and 78/272, on the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (BBNJ), and underscores that the intergovernmental conference finalized its work on the BBNJ Agreement, as reflected in resolution 77/321, and invites States and regional economic integration organizations to consider that and its implication for the ocean.

Finally, the draft resolution addresses the Regular Process for Global Reporting and Assessment of the State of the Marine Environment, including Socioeconomic Aspects and the launch of the fourth cycle of the Regular Process to cover five years, from 2026 to 2030. The draft resolution also welcomes the work of the Open-ended Informal Consultative Process on Oceans and the Law of the Sea, for which next year's meeting will focus on the theme of capacity-building and the transfer of marine technology.

On behalf of the coordinator, I wish to express our deep gratitude for the active and constructive engagement of all delegations, including the valuable contributions and hard work of the small group facilitators, and I express special appreciation for the support rendered by the Division for Ocean Affairs and the Law of the Sea in the preparations for this year's Informal Consultations.

Last but not least, I thank all the co-sponsors for their valuable support.

This concludes the introduction of draft resolution A/79/L.37. On behalf of the coordinator, I commend the draft resolution to the General Assembly for adoption.

Allow me at this stage to deliver some remarks in my national capacity.

My delegation wishes to align itself with the statement to be delivered by the representative of Samoa on behalf of the Alliance of Small Island States (AOSIS) at a later stage in the debate. Singapore was honoured to serve as the coordinator for AOSIS for the informal consultations on the oceans omnibus draft resolution and on draft resolution A/79/L.38, on sustainable fisheries. My delegation thanks the Secretary-General for his reports (A/79/68 and A/79/340). We note from the latest report that there continue to be many ocean-related issues that have to be addressed. Those include threats to marine ecosystems and biodiversity, as well as to maritime safety and security. That is of great concern to my delegation.

That said, we are encouraged by recent developments in ocean affairs and the law of the sea. In that connection, we wish to make three points.

First, the international community continues to take steps to address and respond to the implications of climate change-related sea level rise, whose impacts will be severe for small island developing States. My delegation welcomes all initiatives undertaken within the legal framework of UNCLOS. During the high-level week this year, we were pleased to join other AOSIS members in adopting our Leaders Declaration on Sea Level Rise and Statehood, in which members affirmed that statehood cannot be challenged under any circumstances of climate change-related sea level rise.

Secondly, the BBNJ Agreement, which will contribute significantly to global efforts to achieve Sustainable Development Goal 14, now has 105 signatories and 15 parties. Singapore was pleased to ratify the agreement during this year's United Nations treaty event, held during the high-level week, and we call on all countries that have not yet done so to sign and ratify the agreement as soon as possible in order for it to enter into force expeditiously.

Singapore was also honoured to have coordinated and introduced resolution 78/272, which established the Preparatory Commission to prepare for the entry into force of the BBNJ Agreement and the convening of the first Meeting of the Conference of the Parties to the agreement. We look forward to participating actively and constructively in the substantive meetings of the Commission that will take place next year.

Thirdly, given the importance of shipping to global trade, supply chains and the economic survival of many countries, including Singapore, my delegation welcomes international efforts — including initiatives undertaken by the Security Council and the International Maritime Organization — to address issues of maritime safety and security. My delegation was pleased to have been the proponent of action 22 of the Pact for the Future (resolution 79/1), in which States recognized the need to address the serious impacts of threats to maritime safety and security in accordance with international law, in particular as reflected in the Charter of the United Nations and UNCLOS.

I wish to state that it is fitting that our consideration of agenda item 75 comes shortly after the thirtieth anniversary of the entry into force of UNCLOS. As the Secretary-General rightly observes in his latest report,

> "[t]hirty years after its entry into force, the United Nations Convention on the Law of the Sea remains the keystone for global ocean governance" (*A/79/340, para. 96*).

Indeed, UNCLOS has contributed and continues to be of critical importance to international peace, security and sustainable development. In this regard, its comprehensive and universally accepted rules have, among other things, ensured freedom of navigation, open trade routes and sea lines of communication, as well as the protection and preservation of the marine environment.

Singapore is proud of its contributions to the formation and development of UNCLOS, most notably when Ambassador Tommy Koh served as President of the third United Nations Conference on the Law of the Sea from 1981 until its conclusion. We are also very proud that Ambassador Rena Lee, Singapore's ambassador for international law, served as President of the intergovernmental conference that successfully negotiated and adopted the BBNJ Agreement under UNCLOS, on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction.

I take this opportunity to announce that Ambassador Rena Lee will be Singapore's candidate for election to the International Court of Justice in November 2026, and we hope that all States will support her candidature.

As a small island nation whose history, people and economy are intricately intertwined with the ocean, Singapore depends on the full and effective implementation of UNCLOS for our survival and prosperity. All maritime claims must be in accordance with the relevant rules of the Convention, which are comprehensive, and all freedoms, rights and obligations set out therein must be respected and adhered to. Singapore will continue to be unwavering in its support for UNCLOS and its status as the constitution for the oceans.

In conclusion, my delegation congratulates Ms. Leticia Carvalho of Brazil on her election as Secretary-General of the International Seabed Authority (ISA) — the first woman and the first Latin American to hold that position. My delegation looks forward to working closely with her to advance the ISA mandate, as set out in UNCLOS and the 1994 Agreement relating to the Implementation of Part XI of the United Nations Convention on the Law of the Sea of 10 December 1982. We thank the outgoing Secretary-General of ISA, Mr. Michael Lodge, for his years of service to the organization and for his leadership.

Finally, my delegation welcome San Marino as the 170th party to UNCLOS and calls on all States that have not done so to become parties to the Convention as soon as possible.

The Acting President: I now give the floor to the representative of Norway to introduce draft resolution A/79/L.38.

Mr. Løvold (Norway): This year marks the thirtieth anniversary of the entry into force of the United Nations Convention on the Law of the Sea (UNCLOS). The Convention, with its universal and unified character, is one of the most significant multilateral instruments ever created. As the constitution of the oceans, the Convention sets out the legal framework within which all activities in the oceans and seas must be carried out. It is noteworthy — and a testament to the Convention's enduring success — that many of its provisions are considered to reflect customary international law, thereby providing rights and obligations to all States.

Norway has had the honour of coordinating the informal consultations on draft resolution A/79/L.38, on sustainable fisheries. I am very pleased to introduce the text on behalf of the sponsors.

The draft resolution recognizes the significant contribution of sustainable fisheries and aquaculture to food security and nutrition, income, wealth and poverty alleviation for both present and future generations. It also reflects the most recent advances relevant to fisheries. That includes several important updates in paragraphs concerning data collection and exchange, small-scale fisheries and the impacts of climate change.

Next year, another celebration is upcoming. Thirty years have passed since the adoption of the 1995 Agreement for the Implementation of the Provisions of the United Nations Convention on the Law of the Sea of 10 December 1982 relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks, and related instruments. That milestone will be duly marked at the 2025 Informal Consultative Process on Oceans and the Law of the Sea under the theme, "The thirtieth anniversary of the 1995 United Nations Fish Stocks Agreement: looking to the future". Norway looks forward to that opportunity to recognize both the successes that the agreement has made possible and the remaining work required to achieve universal participation, as well as its full and effective implementation.

Fisheries provide a vital source of food, employment, trade and economic well-being for people throughout the world. Achieving sustainable fisheries, combating illegal, unreported and unregulated fishing, addressing fishing overcapacity, ensuring

safety at sea and decent working conditions in the fisheries sector and improving subregional and regional cooperation are all necessary means to meet the Sustainable Development Goals.

Norway would like to sincerely thank all the sponsors for their support and work and, of course, all delegations for engaging so constructively during the process and for ensuring that the present draft resolution is a consensual product, based on amicable and substantive discussions among all delegations.

Allow me in my national capacity to also stress that Norway is pleased to join others in co-sponsoring draft resolution A/79/L.37, on oceans and the law of the sea, which was just introduced. We would like to thank Ms. Natalie Morris-Sharma of Singapore for her effective leadership during the consultations, and we also wish to extend our gratitude to her and the Division for Ocean Affairs and the Law of the Sea for all their efforts in streamlining and shortening the ever-growing draft resolution. Norway welcomes those changes, as well as all the substantive proposals included in this year's draft resolution.

The International Tribunal of the Law of the Sea rendered its advisory opinion on climate change and international law in May. The proceedings and, subsequently, the advisory opinion are testaments to the relevance and competence of the Tribunal. Norway was pleased to see a clear reference to the advisory opinion in both the draft resolution on sustainable fisheries and the draft resolution on oceans and the law of the sea, further underscoring the clear link between responding to the threat of climate change and ensuring sustainable ocean management.

I would also like to highlight the reference to the decision of the General Assembly to establish the Preparatory Commission for the Entry into Force of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (BBNJ). In our view, the BBNJ Agreement constitutes the greatest development in ocean management since the adoption of UNCLOS. It shows that the Convention can adapt to meet evolving challenges and demonstrates the continued strength and promise of multilateralism. Norway signed the agreement last year and is on track to ratify it ahead of the United Nations Ocean Conference in June next year. We urge all States to rapidly sign and ratify that essential component of the law of the sea framework.

Furthermore, Norway welcomes the references to the important negotiations taking place at the International Seabed Authority, the progress made and the decisions taken by the Council. Norway encourages the Authority to continue its work on the draft regulations as a matter of priority and is committed to doing its part in that endeavour. We would like to thank the outgoing Secretary-General, Mr. Michael Lodge, for his very important contributions to the work of the Authority over many years. We also look forward to working closely with the incoming Secretary-General, Ms. Leticia Carvalho.

In conclusion, this year's draft resolutions provide important guidance on how to ensure the effective protection of the marine environment and the sustainable use of the resources of the ocean. Norway considers those commitments to be promising and necessary to fulfil our common obligations.

Ms. Bartley (Samoa): I have the honour of delivering this statement on behalf of the Alliance of Small Island States (AOSIS).

We have stated in this forum in previous years, and reiterate today, that the critical role of the world's oceans in sustaining life is intertwined with the livelihoods of small island developing States (SIDS). The continued deterioration of the health

of the ocean and the irreversible and intergenerational impacts of declining marine ecosystems, given the role of the ocean in fostering global interconnectedness, remain deeply concerning for our peoples.

AOSIS welcomes the reaffirmation, in the draft resolutions to be adopted today (A/79/L.37 and A/79/L.38) of resolution 78/317 of 16 July 2024, through which the Antigua and Barbuda Agenda for Small Island Developing States: A Renewed Declaration for Resilient Prosperity was adopted. The Agenda charts the course for the transformative shift that SIDS require to achieve sustainable development. In relation to the ocean, as reflected in the Agenda and in the relevant paragraphs of the draft resolutions that we are adopting today, SIDS seek the support of the international community to conserve and sustainably use the ocean and its resources. Such support is of critical importance to SIDS, given our dependence on the ocean, and we hope that the international community will heed that call. In that connection, the theme of the next meeting of the United Nations Open-ended Informal Consultative Process on Oceans and the Law of the Sea — namely, “Capacity-building and the transfer of marine technology: New developments, approaches and challenges” — is timely.

AOSIS also appreciates the reference, in the draft resolutions that we are adopting, to the advisory opinion of the International Tribunal on the Law of the Sea on climate change and international law. Climate change remains a serious threat to all SIDS, to which we are uniquely and disproportionately vulnerable. The findings of the Intergovernmental Panel on Climate Change’s *Special Report on the Ocean and Cryosphere in a Changing Climate* and the sixth assessment report, including its synthesis report, are alarming for SIDS, given the disproportionate socioeconomic consequences for countries that rely on the health of the ocean for economic viability.

We are gravely concerned that global emissions are not in line with the temperature goal of the Paris Agreement on Climate Change. The window of opportunity to raise ambition and implement existing commitments in order to keep warming to 1.5°C above pre-industrial levels within reach is rapidly closing. Achieving the Paris Agreement goal is crucial to the sustainable development of SIDS. We reiterate yet again the call to urgently curb global greenhouse gas emissions to achieve this objective.

AOSIS also welcomes the reference in draft resolution A/79/L.37, on oceans and the law of the sea, to the recently adopted AOSIS Leaders Declaration on Sea Level Rise and Statehood. As SIDS have said many times before, there is no existential threat to our statehood from sea level rise. The physical reality of land territory disappearing or becoming uninhabitable cannot be conflated with the legal rules concerning statehood and sovereignty, including permanent sovereignty over natural resources. To that end, the AOSIS Declaration reaffirms, among other things, that international law is premised on a principle of continuity of statehood and that, consistent with the principles of equity, fairness and sovereign equality of States, statehood cannot be challenged under any circumstances of climate change-related sea level rise.

In relation to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (BBNJ), SIDS have featured prominently in driving momentum and pace to facilitate the conclusion and early entry into force of the agreement. SIDS nationals presided over the intergovernmental conference that negotiated and concluded the BBNJ Agreement, coordinated the resolutions of the General Assembly on the agreement and are now co-chairing the Preparatory Commission for the Entry into Force of the BBNJ Agreement. Of the agreement’s 15 ratifications to date, 11 are from SIDS. The entry into force and subsequent implementation of the agreement are critical to protecting our ocean and to

sustainably and equitably utilizing its resources. To that end, we look forward to working alongside others at the first and second sessions of the Preparatory Commission for the BBNJ Agreement in 2025.

AOSIS notes the reference made to the decision of the United Nations Environment Assembly to convene an intergovernmental negotiating committee to develop an international legally binding instrument on plastic pollution, including in the marine environment, and the work of the committee over the course of its five sessions. The impact of plastic pollution on the marine environment is a critical issue for SIDS, not only having adverse effects on key economic sectors, but also impacting human health and the very ecosystems that are key livelihood providers for SIDS and coastal communities. SIDS have consistently advocated for an ambitious, effective and equitable instrument that addresses a full life cycle approach to end plastic pollution once and for all. AOSIS has actively engaged in the intergovernmental negotiating committee and commits to continuing that work in the committee's efforts to finalize negotiations at its resumed fifth session in 2025.

Finally, AOSIS welcomes the reference in the draft resolutions to the thirtieth anniversary of the entry into force of the United Nations Convention on the Law of the Sea (UNCLOS), the constitution for the oceans, on 16 November 2024. As reflected in the draft resolutions, UNCLOS sets out the legal framework within which all activities in the oceans and seas must be carried out. As we stand at the crossroads of environmental challenges and sustainable development, it is essential that we collectively commit to upholding and strengthening the principles embedded in UNCLOS.

Mr. Bouchedoub (Algeria) (*spoke in Arabic*): At the outset, I would like to thank the Secretary-General for his reports under the agenda item "Oceans and the law of the sea" (A/79/68 and A/79/340). I also wish to express my appreciation to Singapore and Norway for facilitating the informal consultations on the two draft resolutions under this agenda item (A/79/L.37 and A/79/L.38), as well as to the Division for Ocean Affairs and the Law of the Sea for their efforts and valuable support to Member States.

I take this opportunity to reiterate the position of my delegation on a number of issues under this agenda item.

As a State party to the 1982 United Nations Convention on the Law of the Sea (UNCLOS) and the 1994 Agreement relating to the Implementation of Part XI of the United Nations Convention on the Law of the Sea of 10 December 1982, Algeria recognizes the importance of that international framework in striking a balance between the rights and obligations of States and the users of the sea through the management of activities related to oceans and seas. Algeria has fully abided by these provisions and considers UNCLOS as the constitution for the seas.

That is especially true when it established a contiguous zone adjacent to its territorial sea in 2004 and an exclusive economic zone off its coasts in 2018, and when it concluded bilateral agreements with neighbouring countries to delineate maritime boundaries with them. The most recent example was the signing of the maritime border agreement between Algeria and Tunisia in 2011. UNCLOS provides integrated rules for all maritime zones and their uses and contributes to the peaceful settlement of maritime disputes through the three established mechanisms: the International Tribunal for the Law of the Sea, the International Seabed Authority, which has been working to develop a draft framework for the exploitation of mineral resources in areas beyond national jurisdiction, the Commission on the Limits of the Continental Shelf, which has played a significant and important role regarding the outer limits of the continental shelf.

As a geographically vulnerable coastal State, located on the south-western shore of the Mediterranean, Algeria is committed to achieving the Sustainable Development Goals, in particular Goal 14, on the sustainability of oceans. In that regard, we look forward to the convening of the third United Nations Ocean Conference next year to advance that objective. Within the framework of its national development policy, Algeria has given great attention to that goal by adopting strategies and legislation to safeguard marine resources and to secure the optimal utilization of marine resources and the blue economy in the context of the goals of achieving sustainable development. Algeria commends efforts made to ensure the sustainable management of fisheries, which play a vital role in supporting the economic activities of developing countries, preserving the sustainability of marine resources and ensuring food security for all. It also encourages all States, fisheries management organizations and relevant international bodies to prioritize responsible fisheries management, the use of eco-friendly fishing methods and combat illegal, unreported and unregulated fishing.

The impacts of climate change on the oceans and seas are multifaceted and pose a profound challenge, and its consequences are of paramount concern to us all. To address its negative impact, developed countries must uphold their commitments under the principle of common but differentiated responsibilities, as enshrined in the United Nations Framework Convention on Climate Change and the Paris Agreement on Climate Change by reducing greenhouse gas emissions, providing financial resources, building capacities, transferring technology and providing technical assistance. In that regard, we welcome the important work of the International Law Commission on the legal implications of sea level rise. We emphasize that any legal solution and approach to addressing sea level rise must be consistent with the provisions of UNCLOS so as to ensure stability, legal security and respect for existing maritime boundaries and its intangibility.

The annual omnibus resolution on oceans and the law of the sea is considered the cornerstone of efforts to govern seas and oceans, as it monitors the implementation of mandates related to UNCLOS and its bodies, as well as its implementing agreements within the framework of the United Nations. providing essential follow-up. Therefore, from the perspective of revitalizing the work of the General Assembly, my delegation wishes to underscore that due attention should, in future, be accorded to rationalizing, streamlining, shortening and standardizing the drafting of the resolution under this agenda item. Emphasis should be placed exclusively on elements of priority for the States parties to the Convention with a view to facilitating its implementation by the relevant bodies responsible for applying the provisions of the Convention.

In conclusion, Algeria reiterates its continued active participation in all international efforts aimed at promoting the implementation of the United Nations Convention on the Law of the Sea, advancing the achievement of Sustainable Development Goal 14 and ensuring the good and sustainable governance of the oceans and seas for the benefit of present and future generations.

Mr. Babo Soares (Timor-Leste): Timor-Leste aligns itself with the statements delivered by the representatives of Portugal, on behalf of the Community of Portuguese-speaking Countries (see A/79/PV.51), and Samoa, on behalf of the Alliance of Small Island States, respectively.

I will now deliver remarks in our national capacity.

Timor-Leste, as a sovereign nation with a rich maritime heritage, recognizes the critical importance of the ocean in sustaining livelihoods, promoting economic growth and preserving the ecological balance of our planet. In that regard, we welcome the reports of the Secretary-General (A/79/68 and A/79/340) introduced earlier this week.

The United Nations Convention on the Law of the Sea (UNCLOS) is the cornerstone of international maritime law, providing a comprehensive legal framework that balances the rights and responsibilities of States. It promotes cooperation, peace and stability in the world's oceans. We underscore the necessity of strict adherence to UNCLOS as a means of enhancing maritime security, protecting marine biodiversity and facilitating freedom of navigation, which are crucial to fostering a safe and equitable maritime environment.

Geographically, Timor-Leste is strategically positioned in the heart of South-East Asia, lying between the vast expanse of the Pacific and Indian Oceans. That privileged location allows us to derive significant economic benefits from our abundant marine resources. The ocean, which covers more than 70 per cent of our planet's surface, serves as a primary source of food, energy and mineral resources for billions of people worldwide. The sustainable management of those valuable resources is vital not only for the prosperity of Timor-Leste, but also for the well-being of the global community. Overfishing, illegal practices, pollution, climate change and ocean acidification threaten the sustainability of marine ecosystems. Consequently, we emphasize the urgent need for collective action to address illegal, unreported and unregulated fishing and to improve data collection, capacity-building and technology transfers.

Timor-Leste is proud to have ratified the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (BBNJ) and invites other States to join us. Collaboration at both the regional and the international levels is vital to tackling the pressing challenges of illegal fishing, climate change and marine pollution. Our Government has undertaken significant initiatives for effective ocean governance, such as the establishment of marine protected areas and active participation in regional fisheries management organizations. We call upon all Member States to prioritize the implementation of sustainable practices and to make necessary investments in monitoring and enforcement capabilities for the protection of our shared marine resources.

Timor-Leste is acutely aware of the effects of climate change on our oceans, which pose unprecedented threats to coastal and island nations. The consequences of rising sea levels, ocean acidification and altered marine ecosystems are happening now and creating an urgent need for collective action. We urge the international community to extend technical and financial support to developing nations, empowering us to adapt to those drastic changes while preserving our marine environments for future generations.

In addition to those efforts, we highlight the significance of capacity-building and education in promoting ocean literacy and sustainable practices within our communities. Empowering local populations to engage in the stewardship of their marine resources is essential to achieving sustainable ocean governance and management. By fostering a culture of conservation and awareness, we not only protect our vital ecosystems but also equip future generations with the necessary tools to thrive in harmony with their environment.

Mr. Aref (Islamic Republic of Iran): I would like to commence by expressing my gratitude for the commendable efforts of the coordinators of the informal consultations on the draft resolutions to be considered under agenda item 75 (A/79/L.37 and A/79/L.38). We attach great importance to the agenda item, as it provides an opportunity to address activities related to the oceans and seas, which are important sources of sustenance, livelihood and development and offer invaluable social and economic benefits to millions of people around the world.

The Islamic Republic of Iran, as a coastal State of the Persian Gulf and the Sea of Oman, highly values sustainable fisheries management and oceans sustainability, which play important roles in supporting the economic activities of developing countries, conserving marine resources, maintaining healthy marine ecosystems and promoting food security.

Having said that, the Islamic Republic of Iran highlights the importance of prioritizing responsible fisheries management and combating illegal, unreported and unregulated fishing. In promoting sustainable fisheries and in attaining common objectives sought in other activities in the oceans and high seas, due regard shall be given to the crucial role of capacity-building and technology transfer, in particular to the benefit of, and based on the needs and priorities of, developing countries, especially considering the challenges that such countries and their seafood industry encounter in that area.

To that end, facilitating the access of developing countries to new technologies and development of marine technology — including in relation to the exploration, exploitation, conservation and management of marine resources; the protection and preservation of the marine environment; as well as technical assistance and advanced scientific knowledge — should be an integral part of international cooperation in those areas. Those efforts need to be coupled with and strengthened through appropriate funding and capacity-building.

In addressing this meeting under the present agenda item dedicated to discussions on the best ways and means to promote international cooperation relating to oceans and seas, we cannot lose sight of the detrimental impact of unilateral coercive measures, which constitute a flagrant violation of the fundamental principles of international law and the principles set forth in the Charter of the United Nations. Such internationally wrongful acts impede international cooperation, trade and commerce among States, including in the oceans and seas. Such unlawful measures also undermine the capacity of affected States and impede their access to the technologies required to address threats facing the ocean, facilitate ocean observation, build resilient ocean communities and mitigate the impacts of climate change, among other things.

Unilateral coercive measures have serious negative impacts on maritime safety and security, as such measures impede access to maritime technologies and equipment, including those for maritime safety, thereby increasing the risks of maritime activities for affected countries. We reiterate that those unlawful measures should be terminated. States should desist and refrain from promulgating, applying or otherwise giving effect to such illegal measures.

As a signatory State to the United Nations Convention on the Law of the Sea (UNCLOS), the Islamic Republic of Iran recognizes the importance of that international legal framework in addressing activities related to the oceans and seas, as it falls within its purpose and scope. Nevertheless, we continue to assert that any reference to UNCLOS should be made and understood in tandem with relevant international law, including other international legal instruments and frameworks.

It is unfortunate that, despite the constructive engagement of my delegation in the informal consultations on the draft resolutions, which emanate from our strong attachment to multilateralism, international cooperation and the importance of preserving the oceans, seas and their resources, as well as the safety of maritime activities, the concerns and views regarding UNCLOS of non-parties to the Convention, including those of my delegation, were not taken into account. In order to preserve the inclusivity of the annual resolution on the law of the sea, it is essential to consider the legal positions and concerns of non-parties to UNCLOS. That

approach not only fosters wider recognition and legitimacy but also acknowledges the complexities and diversity of issues currently facing ocean governance that are not directly addressed by UNCLOS. By referencing other related instruments and frameworks, it would encompass various perspectives and legal frameworks, thereby enhancing cooperation among all States. That broader approach is vital to addressing emerging challenges in ocean management, such as climate change and marine biodiversity loss, which require collaborative efforts beyond the limitations of UNCLOS alone.

We would like to reiterate that the engagement of my delegation in the negotiations on the two draft resolutions, as well as the references made therein to UNCLOS, cannot and should not be construed as any change in the legal position of the Islamic Republic of Iran in relation to UNCLOS. They neither affect nor prejudice the legal status of the Islamic Republic of Iran as a non-party to the United Nations Convention on the Law of the Sea.

The deployment and extraordinary presence of military fleets from outside the region within the Persian Gulf not only undermine the safety and security of coastal States and smooth navigation in that body of water but also exacerbate marine pollution and the depletion of marine resources. The Islamic Republic of Iran is determined to enforce its laws and regulations to address any maritime pollution and environmental harms caused by vessels that fall under its jurisdiction in the Persian Gulf.

My delegation would like to welcome the adoption of the legally binding Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (BBNJ). We believe that the treaty represents a great milestone in global efforts to protect and sustainably use biological resources in areas beyond national jurisdiction. We also welcome the establishment of the Preparatory Commission to prepare for the entry into Force of the agreement and the convening of the first Meeting of the Conference of the Parties to the agreement earlier this year. Looking forward to the meetings of the Commission next year, we emphasize the importance of an inclusive and transparent approach that would guarantee the constructive engagement of all delegations, thereby propelling that important process forward.

We assert that the common heritage of humankind is the guiding principle to achieve the objectives of the BBNJ Agreement, including access to and sharing the benefits of marine genetic resources. That principle provides a legal foundation for a fair and equitable regime that would allow all countries to benefit from the potential that marine biodiversity represents in terms of food security and economic prosperity, and to address the challenges of conservation and sustainable use of marine genetic resources.

In conclusion, regarding the use of an incorrect name for the Persian Gulf in a statement made by a delegation under this agenda item on 10 December, I would like to stress that “Persian Gulf” is the only true geographical designation for the body of water lying between Iran and the Arabian Peninsula. That name has been used since the dawn of history and has been endorsed by the United Nations system. It must therefore be respected by all.

Mr. Lippwe (Federated States of Micronesia): Micronesia aligns itself with the statements delivered on behalf of the Alliance of Small Island States (AOSIS) and the Pacific Islands Forum (see A/79/PV.51), respectively.

I also wish to express our gratitude to the coordinators of draft resolutions A/79/L.37 and A/79/L.38, Ms. Morris-Sharma of Singapore and Mr. Kravik of Norway.

Since Micronesia became a Member of the United Nations in September 1991, we have been talking and grappling with the severe impacts of climate change. I cannot emphasize enough that it is the single greatest threat to our home and our way of life. For us, every degree, every inch of sea level rise and every delay matters. We continue to call on our global community to step up with stronger and urgent action.

The health of our oceans is deteriorating owing to the effects of climate change and greenhouse gas emissions. One of the most hard-hitting issues we are confronted with is sea level rise. We are very pleased that the General Assembly, for the first time, hosted a high-level meeting on sea level rise in September.

Sea level rise poses a significant threat to the livelihoods, well-being and security of our small island nation, communities and ecosystems. However, the climate crisis does not jeopardize our statehood or sovereignty, nor does it diminish our rights under international law. Leaders from the Pacific Islands Forum and the Alliance of Small Island States have adopted declarations affirming that our maritime zones, as established and notified to the Secretary-General in accordance with the United Nations Convention on the Law of the Sea, and the rights and entitlements that flow from them shall continue to apply without reduction, notwithstanding any physical changes connected to climate change-related sea level rise.

We also emphasize the most recent declaration adopted by the Pacific Islands Forum and AOSIS, which declares, among other things, that the statehood and sovereignty of their members will endure, along with the associated rights and duties, including the protection of our citizens, regardless of the impacts of climate change-related sea level rise. We are pleased that this year's draft resolution on oceans and the law of the sea reflects all those declarations.

On deep-sea mining, Micronesia joins other nations in emphasizing the necessity of comprehensive knowledge, data and scientific understanding of the marine environment and the impacts of deep-sea mining before any exploitation takes place. We urge the International Seabed Authority to finalize all relevant regulations, standards and guidelines for its mining code prior to any exploitation. Additionally, it is crucial that all stakeholders, including adjacent coastal States, Indigenous peoples and local communities in the Pacific, be consulted and that their respective perspectives be fully taken into account before any exploitation occurs.

Micronesia is pleased with the progress towards the entry into force of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (BBNJ). Micronesia was the first country to sign the BBNJ Agreement here in New York over a year ago and among the first to deposit our instrument of ratification. Currently, 105 countries have signed and 15 have already ratified. I urge others to sign and ratify with a view to entry into force next year.

The 2025 United Nations Ocean Conference, hosted by Costa Rica and France, will be an important event and, inter alia, provide an opportunity in that respect. We also look forward to the Preparatory Commission for the Entry into Force of the BBNJ Agreement beginning its important work next year.

Last week in Busan, Republic of Korea, the international community did not adopt a legally binding treaty to end plastic pollution, including in the marine environment. The treaty is still essential and must address plastic pollution at its source — plastic production, in particular primary plastic polymers derived from fossil fuels. Micronesia's Bridge to Busan Declaration, launched earlier this year, called for international support to regulate plastic production in the treaty. We must ensure that the treaty includes strong measures to curb plastic production, which will, in turn, assist us in tackling both pollution and climate change. If we do not address

the unsustainable production of primary plastic polymers, then the global goal of ending plastic pollution by 2040 and limiting the average temperature rise to less than 1.5 °C cannot be achieved.

Micronesia plays a vital role in the Pacific Island Forum 2050 Strategy for the Blue Pacific Continent. As part of the large oceanic countries and territories, we are custodians of nearly 20 per cent of the Earth's surface, placing immense cultural and spiritual value on our ocean and land as a shared heritage. Our leaders are committed to the 2050 focus on preserving and protecting our oceans, ensuring a sustainable future for our children.

Micronesia is dedicated to reducing and preventing the causes and impacts of climate change and sea-level rise. With the support of our partners, we are committed to achieving net-zero carbon emissions by 2050. We pledge to safeguard the future of our people by protecting our sovereignty, maritime zones and resources, especially in the face of climate change-related sea-level rise.

Mr. Proskuryakov (Russian Federation) (*spoke in Russian*): I would like to start our statement by underscoring the fundamental role played by the 1982 United Nations Convention on the Law of the Sea. This year, we celebrate the 30 years since it entered into force. That is a formidable span of time, throughout which the Convention has been an effective instrument for the comprehensive legal governance of the activities of and cooperation among States in the oceans. We call on all parties to that international treaty to fulfil their obligations in good faith and those States that have yet to accede to it consider the possibility of doing so as soon as possible.

One important point is that the Convention has codified the norms of customary law that are mandatory for all States, whether or not they are party to the specific instrument. That approach has allowed for a truly universal legal regime to be created upon its foundation, the integrity of which should be preserved at all costs. The Convention has shown enduring significance and capacity to adapt to changing realities. We are against any initiative that could be detrimental to the delicate balance of interests and unique system of norms that is contained in that instrument.

We will continue to follow very closely all steps undertaken to prepare for the entry into force of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction. We reserve the right to take such steps as we deem necessary to protect the regime established in accordance with the Convention and the 1995 Agreement for the Implementation of the Provisions of the United Nations Convention on the Law of the Sea of 10 December 1982 relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks, and related instruments, as well as the mandates of the competent regional and sectoral organizations.

The Russian delegation appreciates the work done by bodies created under the Convention. The Commission on the Limits of the Continental Shelf (CLCS) is the only body authorized to issue recommendations on establishing the outer limits of the continental shelf. Only those limits of the shelf beyond 200 nautical miles from baselines that were established based on the CLCS recommendations are final and binding on all. No other mechanisms can ensure international recognition of such limits. Given the importance and role of the Commission, we see its ever-growing workload as a great challenge. It is the only Convention organ that does not have its own budget and secretariat. In that connection, we call on all States to prioritize the establishment of the conditions necessary for the members of the CLCS to carry out their job correctly. I recall an initiative put forward this year by our delegation at the Conference of States Parties.

Its aim is to preserve the voluntary contribution fund to ensure the participation of members of the Commission from developing countries, using the United Nations regular budget as a kind of insurance. Expenses covered by the United Nations regular budget could then be subsequently reimbursed from the fund as and when voluntary contributions come in. At the same time, the effectiveness of the work of the CLCS would be guaranteed whether or not there were sufficient funds available when conducting its next session.

We fully understand that this is a far from ideal solution. However, it would allow for a key issue to be addressed swiftly, unlike far-fetched initiatives that have been discussed for years to amend the Convention. We underscore that this arrangement, which proposes using the United Nations regular budget as insurance in case voluntary contributions fall short, is in principle nothing new for the practice of the Organization. Indeed, it is how the work of some ad hoc tribunals has been financed for decades. Bearing in mind that the CLCS's job is to identify where the continental shelf ends and where the international seabed area begins, the mineral resources of which are recognized to be the common heritage of humankind, the work of the Commission, as a minimum, is no less important than those aforementioned bodies.

In the light of all this, we ask States to take a constructive and thoughtful approach to Russia's initiative. We are ready to cooperate with any interested party, both within the Meeting of States' Parties and at the General Assembly, to ensure that it can be operationalized as soon as possible. Once again, we underscore the importance for States that nominate experts to the CLCS to ensure that they meet their obligations to assure their participation in the work. It is important to ensure that all experts work on an equal footing. That would go a long way to supporting the principle of justice. In that connection, we express our gratitude to the Chair of the CLCS for his recent letter, which contained useful information regarding standards for ensuring the activities of members of the Commission.

We note the importance of the work done by the International Seabed Authority to develop a system of norms in the mining of mineral resources in the Area. It is important to begin the practical implementation of the unique mandate of the Authority with respect to the exploitation and implementation of such resources in the interests of the entirety of humankind. The Russian delegation will continue to make every effort to achieve this. We have noted the increased workload of the International Tribunal for the Law of the Sea. We see that as an indication of States' trust in its authority and its competence. However, we underscore the critical importance of ensuring that all Convention bodies continue to strictly comply with their individual mandates.

The importance of the oceans for humankind is growing. At the forefront are problems of ensuring safety at sea, the sustainable use of marine resources and the preservation of the marine environment for future generations. We also underscore that the key role in finding solutions to those problems lies with States, which have to find the best balance between the conservation and sustainable use of the ocean's resources. Our delegation, as all know, has consistently advocated for that balance to be struck based on the principles and norms of the 1982 Convention. At the same time, we do not support initiatives that run the risk of arbitrarily curtailing legitimate activities at sea.

One priority for the Russian Federation is the conservation and sustainable management of fish stocks. We believe that the 1995 Agreement for the Implementation of the Provisions of the United Nations Convention on the Law of the Sea of 10 December 1982 relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks, and related instruments

and the network of regional fisheries management organizations and agreements created under them are time-tested instruments for managing fishing in areas beyond national jurisdictions. We call on States that have yet to do so to consider the possibility of acceding to the agreement.

The United Nations Convention on the Law of the Sea established a universal regime for the use of the seas and oceans for maintaining peace, justice and the prosperity of all peoples. However, while the United States of America is not a party, it has taken it upon itself to infringe on the principle of the common heritage of humankind. The Russian position regarding the unilateral declaration of Washington to seize several areas of the deep seabed, in the spirit of the Wild West, is well-known. We flatly reject and do not recognize the arbitrary establishment by the United States of the outer limits of its continental shelf.

We underscore that ignoring the CLCS and its unique mandate is unacceptable. In that connection, it is not surprising that it was the American delegation, during negotiations on the annual omnibus draft resolution on oceans and the law of the sea (A/79/L.37), that blocked the proposals focused on reaffirming the principle of the common heritage of humankind and the role of the CLCS in that area.

We support the annual draft resolutions on sustainable fisheries (A/79/L.38) and on oceans and the law of the sea, which have been developed following complex and lengthy negotiations. At the same time, it is important to keep those instruments friendly to their users — the national bodies responsible for formulating and implementing fisheries policy and other activities at sea using marine resources. In that connection, we are concerned to see the precipitous growth in the number of completely irrelevant proposals accompanied to unjustifiably expand the thematic scope of the draft resolution.

We also welcome the efforts of the coordinators focused on streamlining and decreasing the length of documents. That is, of course, a step in the right direction. We continue call on delegations to refrain from introducing irrelevant subjects that have already been reflected in thematic resolutions of the General Assembly or in the decisions of specialized international organizations into the important documents that we are discussing.

In conclusion, I thank the facilitators of the informal consultations on the draft oceans omnibus resolution, Ms. Natalie Morris-Sharma, and the draft resolution on sustainable fisheries, Mr. Andreas Motzfeldt Kravik, respectively. Under their leadership, the negotiations were constructive and successful. We also express our gratitude to the Division of Ocean Affairs and the Law of the Sea for its effective assistance to delegations.

Mr. Hoang Giang Dang (Viet Nam): I thank you, Sir, for convening this important plenary discussion on the occasion of the thirtieth anniversary of the entry into force of the United Nations Convention on the Law of the Sea (UNCLOS). This is an excellent opportunity for Member States to take stock of the achievements and challenges in the implementation of UNCLOS and to deliberate on the way forward.

Over the past 30 years, and now counting 170 States parties, UNCLOS has solidified its role as a pivotal legal instrument and the most impactful achievement in the qualification of modern international law. As the constitution of the oceans, UNCLOS provides a universal, comprehensive and unified legal framework that governs the rights and obligations of all States in their use of the seas and oceans, management of marine resources and conservation efforts for future generations.

The Convention establishes a robust legal foundation that promotes equality and sustainability in the use of marine resources while clearly outlining the

responsibilities of States in safeguarding the marine environment. The Convention also sets forth detailed rules and procedures for delimiting maritime zones and determining the sovereignty, sovereign rights and jurisdiction of States over those zones, as well as the maritime activities conducted within them. Additionally, it establishes a compulsory dispute-resolution mechanism to peacefully resolve disputes between States regarding the interpretation and application of its provisions. The overarching normative system, as enshrined in the Convention, has significantly contributed to ensuring good order at sea, thus maintaining the peace, security and prosperity of our world over the past decades.

The twenty-first century has brought a host of new challenges, including the adverse impacts of climate change on the oceans, threats from sea-level rise and coastal erosion and issues arising from advances in marine technologies. Maritime conflicts and disputes persist, often becoming more complex in various regions. In the face of those evolving challenges, the Convention remains a cornerstone of international law, maintaining its value as a comprehensive legal framework while demonstrating the flexibility and adaptability necessary to address those pressing concerns. Against that backdrop, urgent global actions need to be discussed and implemented effectively. In that regard, Viet Nam would like to emphasize the following points.

First, we should continue to pursue the multilateral approach to address maritime issues in accordance with the Convention. In this connection, we welcome the recent adoption of the Pact for the Future (resolution 79/1) and the inclusion of maritime security and safety as a stand-alone action area, reinforcing the central role of UNCLOS as a core framework for addressing evolving maritime security challenges.

Secondly, we must further strengthen the roles and effectiveness of international and regional mechanisms on ocean governance with a view to strengthening the effectiveness and universality of the Convention. In that vein, we look forward to working closely with all Member States to ensure the successful preparation and convening of the third United Nations Ocean Conference in 2025.

Thirdly, it is crucial to further develop and adopt new implementing instruments and regulations under UNCLOS to ensure the effective application of and compliance with the Convention in specific areas of maritime cooperation. A significant milestone of that effort was the successful adoption and opening for signature of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction. Viet Nam was among the first signatories of the Agreement, and in that regard we urge all States to sign and expedite their ratification procedures to facilitate the early entry into force of the agreement. We also encourage the International Seabed Authority to make further progress in drafting regulations for seabed mining. Additionally, we emphasize the importance of maintaining momentum and accelerating negotiations on the new legally binding instrument to address plastic pollution in the coming years.

Fourthly, we stress the utmost importance for all States to strengthen the rule of law in the oceans, as established by the Convention. All States, big or small, must comply with legal and normative obligations under the Convention in good faith. State actions, including maritime claims, maritime activities and international and regional cooperation, must be in line with UNCLOS. The freedom of navigation and the safety and security of lawful maritime activities must be ensured. It is also important to settle maritime disputes through peaceful means, with full respect for legal mechanisms and processes provided for in UNCLOS. We also call on States that have not acceded to the Convention to do so as soon as possible.

Fifthly, the management, conservation and sustainable use of the oceans, seas and marine resources for sustainable development must be promoted by further commitments and action if we are to fully implement Sustainable Development Goal 14. States must also take concrete action to promote the transfer of marine technologies, thereby enabling developing countries to build the capacity needed to address the triple planetary crisis of climate change, biodiversity loss and pollution and ensure the sustainable development of the oceans.

As a country with a long coastline, Viet Nam has a large population that depends on the sea for its livelihoods and food security. As such, it is crucial to recognize the vital importance of the blue economy to ensure economic growth and sustainable development.

This year also marks the thirtieth anniversary of Viet Nam's ratification of UNCLOS. Over the past decades, as an active and responsible State party to the Convention, Viet Nam has made significant progress in enacting national legislation, delimiting maritime zones and managing marine resources, in accordance with UNCLOS. As a founding member of the Group of Friends of UNCLOS, together with nearly 120 fellow members, Viet Nam advocates greater understanding and adherence to the Convention in global maritime governance. Since its inception, the Group of Friends has engaged in many activities aimed at supporting the universality, integrity and implementation of the Convention.

Viet Nam consistently supports the role and functions exercised by tribunals and mechanisms, including the International Tribunal for the Law of the Sea (ITLOS), the International Court of Justice and arbitration and reconciliation procedures. We are actively participating in proceedings related to climate change at those international judicial bodies. As host of the Permanent Court of Arbitration, the Court's regional office, Viet Nam advocates for a stronger role of the Court in the settlement of maritime disputes. Viet Nam has also presented its candidature to the ITLOS for the term 2026–2035, with a view to further contributing to the application and interpretation of the Convention.

The East Sea, or South China Sea, is of strategic importance to peace, security and prosperity in the Asia-Pacific region and the world. Viet Nam attaches great importance to ensuring maritime security and upholding maritime order in the South China Sea, in accordance with UNCLOS. We are concerned about recent activities and serious incidents that contradict the Convention and undermine peace and security in the region. All relevant parties must honour their obligations under UNCLOS in good faith, fully and effectively implement the Declaration on the Conduct of Parties in the South China Sea in its entirety, exercise restraint and resolve disputes peacefully, in line with the Convention and with full respect for diplomatic and legal processes.

We respect the right of every coastal State to adopt domestic laws on the sea, provided that they align with UNCLOS. At the same time, we request full respect for the sovereignty and legitimate rights of other coastal States. Viet Nam remains fully committed to implementing the Declaration on the Conduct of Parties in the South China Sea and working towards the conclusion of an effective, substantive code of conduct in the South China Sea, in accordance with international law, in particular UNCLOS.

Finally, Viet Nam is honoured to co-sponsor this year's omnibus draft resolution A/79/L.37, on oceans and the law of the sea, a result of constructive discussions among Member States, and we thank Singapore and Norway for their hard work in facilitating the negotiations of the draft resolutions under this agenda item.

Mr. Sekeris (Greece): Greece would like to align itself with the statement delivered earlier on behalf of the European Union and its Member States (see A/79/PV.51) and wishes to make the following statement in its national capacity.

A State party to the United Nations Convention on the Law of the Sea (UNCLOS) since 1995, Greece firmly supports the application of the rules of the Convention, which reflects customary international law. UNCLOS sets the legal framework with which all activities of the oceans and seas should be carried out. It is of strategic importance as the basis of national, regional and global action in the marine sector.

The universal unified character of the Convention, the constitution of the oceans, is evidence not only of its impressive participation, but also of the unique comprehensive nature of its provisions. It is thus of paramount importance to preserve the integrity of the Convention and to oppose any attempt to question or undermine it. The Convention promotes the stability of the law, as well as the maintenance of international peace and security, and significantly contributes to sustainable development. It reflects a delicate balance between the rights and duties of all States.

In that context, respect for the freedoms and rights enjoyed by all States, including the freedom of navigation and overflight and navigational rights, is an essential component of the implementation of the Convention. It is also imperative that the sovereignty and sovereign rights of coastal States over the maritime zones, as established under the Convention, be respected, including those generated by islands.

The Convention furthermore provides the framework to address existing and emerging threats to maritime security, which is also one of the main priorities of my country's upcoming tenure as a non-permanent member of the Security Council as of 1 January 2025. It also contains rules of fundamental importance to the preservation and protection of the marine environment. Moreover, through the settlement of disputes procedure, it strengthens the principle of the peaceful settlement thereof. The Convention is a living document, as pointed out by the International Tribunal of the Law of the Sea in its advisory opinion on climate change international law. It represents the foundation of ocean governance that must be respected and provides the legal basis for setting and regulating any issue that may arise.

The unprecedented challenges that the planet is facing require urgent but equally smooth and effective action, which can be carried out with the legal order set out by the Convention. That is the case with the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction, the third implementing agreement under the Convention, adopted last year at the International Conference of the same name. My country, Greece, has signed the agreement and is about to start the certification procedures with a view to completing them by the time the third United Nations Ocean Conference starts in Nice next year. Equally, Greece wishes to underscore the universal character of the agreement and expects that, through the work of the Preparatory Commission established by the General Assembly last year, the BBNJ Agreement will swiftly enter into force and be effectively implemented.

Before closing, I would like to thank the coordinators of the draft resolutions of the oceans and the law of the sea (A/79/L.37) and on sustainable fisheries (A/79/L.38), Ms. Natalie Morris-Sharma of Singapore and Mr. Andreas Motzfeldt Kravik of Norway, respectively, for their stewardship and leadership. We would also like to thank the Division for Ocean Affairs and the Law of the Sea for its professionalism and immense support during this consultation.

In conclusion, today, as we commemorate the thirtieth anniversary of the entry to force of the Convention, the commitment of all States to respecting the legal order of the oceans and the law of the sea, as reflected in UNCLOS, is more than ever appropriate and relevant.

Ms. Douglas (Palau): It is an honour to deliver this statement on behalf of Palau. We fully align ourselves with the statement made by the representatives of Samoa, on behalf of the Alliance of Small Island States (AOSIS), and Tonga, on behalf of the Pacific Islands Forum (see A/79/PV.51).

For centuries, the ocean has been central to Palau's way of life, providing food, economic opportunity and a strong sense of cultural identity. As a big ocean State, we recognize the need to safeguard that invaluable resource while unlocking its full potential for sustainable development. Our commitment to ocean stewardship was further solidified at the twenty-eighth Conference of the Parties to the United Nations Framework Convention on Climate Change, where Palau, alongside our Pacific island neighbours, launched the Unlocking Blue Pacific Prosperity plan. That landmark initiative, aligned with the Kunming-Montreal Global Biodiversity Framework, demonstrates the collective resolve of Pacific Island nations to conserve at least 30 per cent of our land and sea. That bold effort underscores our dedication to biodiversity conservation and economic resilience across the region.

Despite those advances, our oceans remain under threat. The United Nations Convention on the Law of the Sea (UNCLOS) has been instrumental in empowering nations like Palau to manage our maritime resources sustainably. However, challenges such as illegal, unreported and unregulated (IUU) fishing persist. IUU fishing not only undermines economic stability but also jeopardizes marine biodiversity. In addition to IUU fishing, the impacts of climate change, rising sea levels, ocean acidification and coral bleaching are further eroding the resilience of our oceans. It is crucial that support for capacity-building efforts in small island nations such as ours be implemented to ensure that we have the resources and expertise to strengthen enforcement and manage our marine resources effectively. We must also focus on fostering sustainable fisheries management practices that contribute to the long-term health and productivity of marine ecosystems. We call on the global community to strengthen enforcement mechanisms, including by expanding the use of satellite-based monitoring systems, fostering regional collaboration and enhancing global governance and accountability to combat IUU fishing and ensure the long-term health of our oceans.

As stewards of a vast marine territory, Palau has also prioritized leadership in global ocean governance. We are proud to be the first country to ratify the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (BBNJ), recognizing its transformative potential for protecting biodiversity in areas beyond national jurisdiction. In that regard, we urge Member States to join us in ratifying the BBNJ Agreement, a monumental addition to UNCLOS that strives to improve the sustainable use, preservation and equitable sharing of benefits of marine biodiversity in areas beyond a State's national jurisdiction.

The high seas are the tie that binds us and the oceans. They, too, require a solid governing framework if future solutions for the oceans are to be truly effective. Equally critical is our stance on deep-sea mining. Palau has consistently advocated for a moratorium on that activity, grounded in the precautionary principle. Deep-sea ecosystems are among the least understood and most fragile on our planet. In Palau's waters, researchers have uncovered unique species and habitats that provide vital ecosystem services. To jeopardize the structures without robust scientific assessments and enforceable safeguards would be reckless. We call for the reform of the

International Seabed Authority to ensure that environmental considerations take precedence over economic interests.

Plastic pollution is a crisis we face daily. Palau's once pristine beaches are now littered with debris carried across the Pacific. In Kayangel, a coral atoll renowned for its natural beauty, a single clean-up effort removed over 1.5 tons of waste from less than three kilometres of its coastline. Palau has taken decisive action by banning single-use plastics and reef-toxic sunscreens. However, national efforts alone cannot resolve that global issue. We call on Member States to adopt an ambitious and binding plastics treaty that addresses the entire life cycle of plastics and provides support to small nations in tackling that persistent challenge.

As Palau assumes the chairmanship of AOSIS, we are prepared to amplify the voices of small island developing States and champion solutions that reflect our collective responsibilities. From advancing sustainable ocean governance to addressing marine pollution, our leadership will be guided by a simple principle — the ocean is not a challenge to overcome but a shared gift to protect and sustain.

The ocean's omnibus draft resolution (A/79/L.37) affirms our commitment to the principles enshrined in UNCLOS and reflects the spirit of multilateralism that is essential to addressing the challenges of our time. Palau stands ready to work with all Member States to turn commitments into action, ensuring that the ocean remains a source of life, prosperity and inspiration for future generations.

Mr. Douglas (Jamaica): Jamaica aligns itself with the statement delivered by the representative of Samoa on behalf of the Alliance of Small Island States.

Jamaica stands resolute in its commitment to the sustainable and equitable use of the high seas and its invaluable ocean resources. We are of the view that a healthy ocean is critical to supporting marine biodiversity and, with it, livelihoods, food security, trade and maritime security. Unfortunately, the ocean is under threat. In addition to the unsustainable use of the ocean by some economic actors, realities such as sea level rise, coastal erosion, increased temperatures, marine biodiversity loss and other factors of climate change are affecting economies like ours that are dependent on the ocean.

Sea-level rise is a major concern for Jamaica. Approximately 70 per cent of our population resides along the coast and over 50 per cent of critical infrastructure, including airports, seaports and roads, is concentrated in low-lying coastal areas. The tourism sector, which contributes 34 per cent of gross domestic product and 31 per cent to employment, is particularly vulnerable to sea-level rise and coastal erosion. Jamaica, like other small island developing States, is at the forefront of the crisis, despite contributing the least to global greenhouse gas emissions.

Jamaica recognizes that a robust international framework is required to address the issue of sea level rise. We therefore support the ongoing discussions within the International Law Commission on the topic of sea level rise in relation to international law. The legal rights of island and coastal nations must be safeguarded in the face of rising seas, ensuring that our territorial integrity and maritime entitlements are preserved. As an international community, we should also make every effort to ensure that the rights of nations are not affected by sea level rise. We must deepen our common understanding of the threats posed by sea level rise and promote a multisectoral and multi-stakeholder approach to address the challenge. International cooperation, technology transfer and financial support are essential.

Jamaica has signed the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (BBNJ) and is actively taking steps

for its early ratification. We are pleased to note the high level of signatories and urge all States Members of the United Nations to ratify the agreement as soon as possible to allow for its early entry into force and its implementation. The BBNJ Agreement will serve to address the long-standing gaps in global governance of the oceans, with a focus specifically on areas beyond national jurisdiction. The BBNJ Agreement presents a unique opportunity for us to strengthen our shared 30 by 30 commitment to ensuring that at least 30 per cent of our terrestrial coastal maritime areas are effectively conserved and managed by 2030.

Jamaica is pleased with the outcome of the organizational meeting of the Preparatory Commission for the Entry into Force of the BBNJ Agreement, held in June. In that regard, we commend Australia and Belize for their stewardship and assure them of Jamaica's full support. We look forward to the substantive meetings of the Preparatory Commission in 2025. Together with Sustainable Development Goal (SDG) 14 and the BBNJ Agreement, the adoption of the Kunming-Montreal Global Biodiversity Framework complements the global architecture for the protection of biodiversity.

In light of the impact of plastics pollution, including in the oceans, Jamaica is also actively participating in the Intergovernmental Negotiating Committee aimed at developing an instrument to address the full life cycle of plastics, including design, production, use and disposal.

We continue to be actively engaged in negotiations to complete the second phase of the fisheries subsidies negotiations at the World Trade Organization as we seek to join global efforts in addressing the issues of illegal, unreported and unregulated (IUU) fishing, overfishing and overcapacity in line with SDG 14.6.

We reaffirm our commitment to the implementation of action 10 of the Pact for the Future (resolution 79/1), which calls for ambitious action to improve the health, productivity, sustainable use and resilience of the oceans and their ecosystems. Those initiatives are a testament to the significant role of multilateralism in dealing with issues related to ocean governance, with the United Nations Convention on the Law of the Sea (UNCLOS) at its core. In that regard, Jamaica joins the international community in celebrating the thirtieth anniversary of the entry into force of UNCLOS. The Convention has significantly bolstered multilateralism. We look forward to successful outcomes at the third United Nations Ocean Conference in June 2025. We appreciate the role being played by Costa Rica and France as Co-Chairs, in particular as it relates to the inclusivity and transparency with which they are managing the preparatory process.

As the host of the International Seabed Authority, Jamaica continues to prioritize ocean affairs at the United Nations. We support the Authority's Strategic Plan 2024–2028, and we will collaborate with partners for its implementation.

As we undertake a collective effort to enhance governance and the future of our oceans, technical assistance and capacity-building for developing countries, especially small island developing States (SIDS), must be a critical part of our work. All members should be adequately capacitated to contribute to the important global trust. That is necessary to address issues such as IUU fishing, gaps in fisheries management, decarbonization in shipping, marine pollution, access to new technologies on fair and equitable terms, use of the oceans to facilitate illegal activities and the need to improve SIDS' research capacity in those areas. Jamaica also takes the view that the achievement of effective oceans governance can be bolstered by bilateral and regional cooperation, especially to address the issue of using the ocean for criminal purposes.

In conclusion, Jamaica thanks the delegations of Norway and Singapore for their coordination of negotiations of the draft resolutions on sustainable fisheries (A/79/L.38) and on oceans and the law of the sea (A/79/L.37), respectively. The tradition of adopting those draft resolutions is a critical component of the United Nations work on ocean-related issues and should be sustained. Jamaica therefore supports the adoption of the draft resolutions. We are particularly pleased to have co-sponsored the draft resolution on oceans and law of the sea.

Jamaica takes this opportunity to thank Mr. Michael Lodge, the outgoing Secretary-General of the International Seabed Authority, for his dedication to service and leadership of the organization during his tenure. We wish him well in his future endeavours. Jamaica also congratulates Ms. Leticia Cavalho on her election to the post of Secretary-General. Ms. Cavalho can count on Jamaica's full support for a successful tenure.

Jamaica will continue to play its part in ensuring that the use of the ocean and ocean resources is sustainable so that the common heritage of humankind can better serve the needs of future generations.

Mr. Tropepi (Argentina) (*spoke in Spanish*): At the outset, allow me to thank Singapore and Norway for their leadership in steering negotiations on the two draft resolutions before the General Assembly today (A/79/L.37 and A/79/L.38).

Argentina is a transcontinental and bi-oceanic country with a vast maritime coastline. We have always been a staunch defender of the international regime established by the United Nations Convention on the Law of the Sea (UNCLOS). Argentina therefore works tirelessly to increase knowledge of our seas and to strengthen norms on fisheries, combat illegal fishing and eliminate fishery subsidies that contribute to illegal fishing, overcapacity and overfishing. In that context, my delegation wishes to reiterate, as we do every year, that UNCLOS is one of the most significant contributions yet seen to the strengthening of peace, security, cooperation and friendly relations among nations.

The Convention is one of the international instruments with the greatest economic, strategic and political impacts. The goal of the Convention's negotiators was to resolve all issues related to the law of the sea within a single instrument. Consequently, its provisions strike a delicate balance between the rights and obligations of States. That balance must be preserved as we address new challenges related to the law of the sea in context of the processes established by the General Assembly.

The conservation and sustainable use of marine biological diversity in areas beyond national jurisdiction is one of the most relevant issues within the prevailing law of the sea. My country therefore wishes to underscore the relevance of the adoption of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (BBNJ), which Argentina signed in June. We are committed to continuing to work within the framework of the Preparatory Commission that will begin to sit next year in order to prepare for the BBNJ Agreement's entry into force.

Argentina wishes to reiterate its gratitude for the ongoing work done by the Commission on the Limits of the Continental Shelf and to stress the importance of ensuring that the Commission enjoys adequate resources and conditions of service commensurate with the importance of its work. Moreover, my delegation recognizes the contributions made by the International Tribunal for the Law of the Sea in developing international law in general and the law of the sea in particular, and to the peaceful resolution of disputes. We also wish to acknowledge the pivotal work of the

International Seabed Authority, as well as the importance of negotiations under way within the Council of that organization on the mining code.

We believe that the exploitation phase should contain a robust regulating framework that encompasses technical, environmental and financial aspects, which must be crafted to ensure that exploitation activities within the Area are conducted in alignment with the best practices and standards available in order to protect the marine environment and to ensure adherence to the principle of the common heritage of humankind, as demanded by UNCLOS.

My delegation wishes to express its concern over the trend, through General Assembly resolutions, to legitimize the attempts of regional fisheries management organizations to adopt measures that exceed the remits of those organizations in terms of space, material and personnel. Argentina objects to resolutions of the General Assembly being interpreted in that way, in particular with respect to measures through which those organizations claim any type of authority they see fit in connection with vessels flying the flag of countries that are not members of those organizations.

Mr. Panier (Haiti) (*spoke in French*): My delegation is honoured to speak at this 52nd plenary meeting on oceans and the law of the sea.

We align ourselves with the statement made by the representative of Samoa on behalf of the Alliance of Small Island Developing States and would like to make a few comments in our national capacity.

Adopted more than four decades ago, the United Nations Convention on the Law of the Sea is a fundamental pillar of multilateralism. It enshrines the rights and responsibilities of nations for the sustainable management of the seas and oceans. That legal instrument also reflects a shared vision of equity and cooperation for peace and sustainable development. My delegation warmly congratulates the Secretary-General on his exhaustive and enlightening reports (A/79/68 and A/78/340), which shed light on the progress and the challenges related to the implementation of the Convention. Those documents provide crucial analysis to guide our work, particularly in the fields of the conservation of marine resources, the protection of biodiversity and the fight against climate threats.

We also welcome the efforts undertaken to guarantee an inclusive approach that is based on solid scientific data, which strengthens the international cooperation that is so necessary to address the challenges linked to oceans and their governance. We also welcome the work undertaken by institutions established under the Convention, particularly the International Seabed Authority, which is doing an outstanding job on all fronts.

My delegation believes that the importance of the Convention lies in its capacity to respond to modern challenges, including the management of marine resources, the protection of biodiversity and the fight against climate threats, which remain priorities. Those are crucial issues for Haiti, an island State where exclusive economic zones play a key role in small-scale fishing and food security. We welcome the progress that has been made possible by instruments such as the 1995 Agreement for the Implementation of the Provisions of the United Nations Convention on the Law of the Sea of 10 December 1982 relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks, and related instruments, which seeks to guarantee the conservation and sustainable management of shared resources.

However, challenges such as overfishing, illicit fishing and the management of fish stocks remain and call for increased cooperation. The recent adoption of the Agreement under the United Nations Convention on the Law of the Sea on the

Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction was a historic step. The agreement supports the management of marine protected areas and the regulation of extractive activities and contributes to protecting vulnerable marine ecosystems.

Haiti, like other small island developing States, insists that the implementation of the agreement be inclusive. The benefits from scientific research and genetic resources must be shared equitably to respond to the needs of the most vulnerable people. We must also pay particular attention to oceans management based on reliable scientific data. Transparency and the sharing of geospatial information are essential to guiding effective collective action. Haiti supports collaboration between the global ocean observing system and local initiatives to bridge existing gaps and build States' technical capacity.

Rising sea levels and extreme climate events are directly threatening coastal communities in Haiti. Those challenges affect our fishing communities and undermine local economies. Haiti reaffirms that the fight against climate change is tied to the protection of oceans. We advocate for climate financing that is designed to strengthen the resilience of marine and coastal communities. Climate justice must remain a priority to guarantee that the most vulnerable States can benefit from concrete support.

In conclusion, the United Nations Convention on the Law of the Sea remains a guiding light to guarantee a sustainable and equitable future. Haiti reaffirms its commitment to respecting the letter and the spirit of the Convention. We will continue to work alongside the international community to protect marine resources, promote climate justice and strengthen biodiversity. Together, we can address those challenges for the benefit of future generations.

Ms. Jóhannsdóttir (Iceland): Last month marked the thirtieth anniversary of the entry into force of the United Nations Convention on the Law of the Sea (UNCLOS), our constitution of the ocean, which sets out the legal framework within which all activities in the oceans and seas must be carried out. That milestone is a cause for celebration. The Convention is a true testament to multilateralism that has stood the test of time, is globally applied and continues to attract new States parties, moving us closer to universal participation. Its contribution to the peace, security and rules-based legal order of our ocean cannot be overstated.

Another important step towards better ocean governance was last year's adoption of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (BBNJ). Once in force, the agreement will provide important additions to the regulatory framework of our oceans and endow us with the necessary tools to achieve our common objectives. We welcome the adoption of resolution 78/272 and the establishment of the Preparatory Commission tasked with facilitating the agreement's entry into force and convening of the first Meeting of the Conference of the Parties. The first substantive meeting of the Preparatory Commission will be held in April next year, and we look forward to engaging with colleagues to ensure that when the BBNJ Agreement enters into force, we are able to hit the ground running.

The sustainable use of the ocean remains a cornerstone of Iceland's prosperity. A healthy and bountiful ocean with long-term sustainability at the core of all management decisions is to the benefit of all. In international discourse, conservation and sustainable use are often portrayed as separate or even conflicting notions, but in reality they are two sides of the same coin.

In June, the Member States came together for a week under the auspices of the Open-ended Informal Consultative Process on Oceans and the Law of the Sea and discussed the topic of oceans as a source of sustainable food. We believe that this topic is especially important as the Food and Agriculture Organization (FAO) confirms that the world has been set back around 15 years in the fight against hunger and food insecurity, with levels of undernourishment comparable to those of 2008 and 2009. A healthy ocean is an important source of nutrition for billions of people. Moreover, blue food systems support livelihoods around the world. FAO estimates that 800 million livelihoods are supported by blue food systems.

The importance of that is reflected in Iceland's international development policy. The policy mandates that Icelandic authorities shall contribute towards improving the livelihoods and resilience of impoverished societies that rely on fisheries by building capacities, capabilities and knowledge for fishing and fish processing. Sustainably harvested and nutritious food from the ocean is also of particular importance due to its low carbon intensity. The ocean holds great potential but also faces significant challenges for a planet hungry for sustainable sources of food. We are convinced that we can overcome those challenges and, together, realize the ocean's potential.

The ocean and climate change are intrinsically interlinked. We must recognize that connection and act accordingly. Ocean acidification is a challenge distinct from climate change, though both share the same root cause. In that regard, the landmark advisory opinion of the International Tribunal for the Law of the Sea (ITLOS), given to the Commission of Small Island States on Climate Change and International Law, is of great value. The opinion highlights the nature of UNCLOS as a living instrument and the constant interplay between law and ever-increasing scientific knowledge. In our view, that is one of the core characteristics of the law of the sea.

Climate change, as science tells us, is taking place and changing the world as we know it. How drastic the changes will be depends on how much climate action we take. Iceland strongly supports the guidance of the Intergovernmental Panel on Climate Change, which is specifically referred to in the advisory opinion of ITLOS, and the goal of limiting temperature increase to 1.5°C.

We support the phasing out of fossil fuels and the elimination of fossil fuels subsidies. That is an important backdrop for discussions on the threats posed by sea level rise. Addressing those threats is the joint responsibility of all States. Iceland remains supportive of the International Law Commission's work on that topic, which touches on the very existence of States. Importantly, all activities to address the threat of sea level rise must be carried out in accordance with the legal framework of UNCLOS.

Strengthening multilateral ocean governance, whether at the global or regional level, remains an ongoing task. States must cooperate on addressing harmful fisheries subsidies, which are a key factor in the widespread depletion of the world's fish stocks, including due to illegal, unreported and unregulated fishing. The World Trade Organization Agreement on Fisheries Subsidies was a major achievement in that field. Negotiations continue in Geneva, under the leadership of Iceland, on additional provisions on subsidies leading to overcapacity and overfishing. We count on States to join the ongoing push and to make every possible effort to conclude those negotiations as soon as possible. What is needed now is the political will to show flexibility and to find convergence on the draft text presented in Geneva. Likewise, we count on States to conclude negotiations on an international legally binding instrument to end plastic pollution.

In conclusion, Iceland is very much looking forward to the United Nations Ocean Conference in Nice next year, under the able leadership of Costa Rica and France. We thank them for their efforts, and we are sure that the Conference will help bring increased focus to our shared ocean and accelerate much-needed action.

Mr. Pérez Manríquez (Mexico) (*spoke in Spanish*): Mexico thanks Singapore for its coordination of draft resolution A/79/L.37, "Oceans and the law of the sea", and for all the effort and dedication that enabled the text under discussion today. We also extend our gratitude to the Division for Ocean Affairs and the Law of the Sea for its key role in the negotiation and preparation of the draft resolution.

Mexico recognizes the United Nations Convention on the Law of the Sea (UNCLOS) as the legal framework governing all activities in the oceans. The instrument is vital for guaranteeing international peace and security, ensuring respect for the rule of law, resolving disputes peacefully and preserving the marine environment. Mexico reaffirms its commitment to the integrity and universality of the treaty.

The International Seabed Authority, the Commission on the Limits of the Continental Shelf and the International Tribunal for the Law of the Sea — institutions established under UNCLOS — play a crucial role in the implementation of its provisions. In particular, the Commission on the Limits of the Continental Shelf provides certainty both to the State concerned and to the rest of the international community on the outer limits of the extended continental shelf. Such limits, once established based on the recommendations issued by the Commission, become definitive and binding.

The relevance of the Commission lies primarily in the fact that its work ensures that the limits of the extended continental shelf do not go beyond what is permitted under international law. That provides legal certainty to States, thereby contributing to the peaceful settlement of disputes and, ultimately, to the maintenance of international peace and security. In that context, Mexico respectfully calls on States that have not yet acceded to UNCLOS or the 1994 Agreement relating to the Implementation of Part XI of the United Nations Convention on the Law of the Sea of 10 December 1982 to consider doing so. Their accession would allow them to fully access the mechanisms established under that instrument, thereby promoting its universality and strengthening the rule of law in the oceans for their own benefit and that of the international community.

The adoption of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (BBNJ) in June 2023 marked a historic milestone, reinforcing the validity of UNCLOS and demonstrating the relevance of multilateralism. The agreement is essential for ensuring the conservation and sustainable use of marine biodiversity in those areas through international cooperation and coordination. Mexico welcomes the efforts to promote the ratification of the BBNJ Agreement and its early entry into force. We congratulate the 15 States that have already ratified it and reiterate our commitment to the process.

In the face of global challenges, individual solutions are not and never will be the answer to global problems. Multilateralism, grounded in the rule of law, cooperation among States and political will, is the most effective tool for addressing the challenges that threaten the oceans and, consequently, humankind.

Mr. Freitas Rocha Bastos (Brazil): Brazil aligns itself with the statement delivered by the representative of Portugal on behalf of the Community of Portuguese-Speaking Countries (see A/79/PV.51).

First, allow me to commend the tenacious work of Ms. Natalie Morris-Sharma of Singapore and Mr. Andreas Motzfeldt Kravik of Norway in coordinating this year's annual draft resolutions on oceans (A/79/L.37) and sustainable fisheries (A/79/L.38), respectively.

We also appreciate the comprehensive and informative reports presented by the Secretary-General under this agenda item (A/79/68 and A/79/340).

Brazil joins previous delegations in celebrating the thirtieth anniversary of the United Nations Convention on the Law of the Sea (UNCLOS), which represents a major and primary source of international law for the global management of the oceans and seas. We reaffirm the universal and unified nature of UNCLOS and the organs established under its framework, namely, the International Tribunal for the Law of the Sea, the International Seabed Authority (ISA) and the Commission on the Limits of the Continental Shelf.

The International Seabed Authority stands at a critical juncture, and it is up to Member States to decide which path to follow. It is our collective responsibility to ensure that activities relating to the Area are intended for the benefit of all humankind, and not to their detriment. Like other States parties, Brazil supports the responsible and sustainable implementation of the ISA mandate, paying due consideration to the protection of the marine environment. That is the reason why we endorse the call for a precautionary pause on deep-sea mining — a pause that does not undermine the development of new markets and technologies nor the mandate of the Authority but allows for informed and science-based decisions.

We congratulate Ms. Leticia Carvalho on her election as Secretary-General of the ISA, the first female, Latin American and oceanographer to hold that position, and we extend our appreciation for the contributions of Mr. Michael Lodge during his tenure.

Brazil will continue to engage actively in the ISA's discussions on deep-sea mining regulations, which need to be guided by a high sense of responsibility towards the current challenges faced by the international community, including a rapidly changing global climate. From our perspective, that will require enhancing the transparency and inclusiveness of the process, while remaining committed to the needs and priorities of developing countries, including small island developing States.

Brazil recognizes the imperative of conserving and sustainably using our oceans in alignment with the three dimensions of sustainable development. As President of Group of 20, we have placed the oceans at the forefront of the agenda, reflecting the vital role that marine ecosystems play in global biodiversity, climate regulation and economic livelihoods. To address the interconnected challenges of ocean health, climate change and sustainable development, Brazil has prioritized initiatives aimed at combating marine pollution, protecting coastal ecosystems and promoting sustainable fishing practices. Brazil has also emphasized the importance of fulfilling environmental and climate finance commitments by developed countries, ensuring equitable access to marine resources, supporting capacity-building for developing countries and fostering innovation in ocean-related economic sectors.

Advancing international cooperation to implement global commitments, such as those under Sustainable Development Goal (SDG) 14 and the Kunming-Montreal Global Biodiversity Framework, remains central to those efforts. We commend France and Costa Rica for hosting the third United Nations Ocean Conference in Nice in 2025, and we look forward to discussions on increasing financial support to reverse the trend of underfunding SDG 14 and on strengthening regional cooperation initiatives, including the zone of peace and cooperation of the South Atlantic.

After nearly 20 years of negotiations, Member States adopted the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (BBNJ). Brazil has signed the agreement and is working towards its swift ratification. As a member of the Bureau of the Preparatory Commission, Brazil will continue to support the work of Belize and Australia in the Commission's efforts to prepare for the entry into force of the BBNJ Agreement and the convening of the first Meeting of the Conference of the Parties.

Finally, let me reaffirm Brazil's steadfast support for the adoption of the draft resolutions under this agenda item.

The Acting President: I now call on the observer of the International Seabed Authority.

Mr. Lodge (International Seabed Authority): I am grateful for the opportunity to address the General Assembly on behalf of the International Seabed Authority.

On 31 December this year, my mandate as Secretary-General of the Authority ends. As this is my final address to the Assembly in that capacity, I wish to take the opportunity to reflect on our collective work over the past eight years.

I was elected in 2016 with the initial mandate to implement the recommendations from the first periodic review of the international regime for the Area. That review, conducted between 2015 and 2017, was overseen by a Review Committee chaired by a former judge of the International Tribunal for the Law of the Sea (ITLOS), Ambassador Helmut Tuerk of Austria. Of the 19 recommendations of the Review Committee adopted by the Assembly, 14 were directed at me as Secretary-General. I am pleased to say that, with everyone's unwavering support, we have implemented each one of those recommendations. Let me highlight some of the key achievements during my tenure.

In 2018, the Authority adopted its first-ever five-year strategic plan, now extended to 2025.

The secretariat, unchanged since 1996, has been reformed and revitalized to respond to the current needs of the Authority, while ensuring maximum efficiency and accountability.

We have witnessed a significant increase in the participation of member States, including developing States, in the Authority's work. We have introduced a more efficient and cost-effective programme of meetings to facilitate that broader engagement.

The fundamental importance of the Authority's mandate to promote and coordinate marine scientific research in the Area and to disseminate related knowledge for the benefit of all States parties has been recognized and prioritized through the Action Plan for Marine Scientific Research in support of the United Nations Decade of Ocean Science for Sustainable Development (2021–2030).

The Authority has fundamentally changed how it supports its membership in developing countries. We have adopted a Capacity Development Strategy and opened regional and national training and research centres in China, Egypt and Cameroon, as well as a Centre of Excellence in Antigua and Barbuda. Dedicated actions have been implemented to support and enhance the participation of women in deep-sea research activities.

The Authority's financing has been transformed. The regular budget increased from $8 million in 2016 to $13 million per year in 2025. Extrabudgetary funding has been raised and cost recovery for key services has been implemented.

The Enterprise has been operationalized through the establishment of the position of Interim Director-General.

In collaboration with the Finance Committee, and as recommended by the Review Committee, the secretariat has produced ground-breaking economic studies and analyses of the equitable sharing of financial benefits derived from activities in the Area, culminating in a proposal for a common heritage fund.

The secretariat has supported the development of critical measures for the protection of the marine environment, aligned with the mandate of the Authority under the Convention and the 1994 Agreement relating to the Implementation of Part XI of the United Nations Convention on the Law of the Sea of 10 December 1982. We have reviewed and strengthened the environmental management plan for the Clarion-Clipperton Zone and supported scientific work to develop regional environmental management plans in the northern Mid-Atlantic Ridge, the Indian Ocean and the north-western Pacific Ocean. Over 450 experts from 55 countries, including representatives of other international organizations, have been engaged in that work over the past five years.

Those are the achievements not of the Authority alone, but of everyone. They might not all be reflected in a resolution, no matter how comprehensive that resolution is, but their recognition and celebration are crucial.

This year marks the thirtieth anniversary of the establishment of the Authority. The Convention and its institutions provide a rules-based order for the seas and oceans, ensuring peace, security and international cooperation. However, multiple threats challenge that order.

The 1994 agreement paved the way for developed States to join the Convention, enabling the three institutions established under the Convention to become functional and effective. During the process, the Group of 77 made significant sacrifices and concessions on key elements fundamental to their interests. They did so for the common good and in the spirit of multilateralism.

The 1994 agreement also established a new bargain. It protected the interests of States parties, mainly developed countries, that wished to pursue activities in the Area by allowing those activities to proceed in a precautionary manner, under the supervision of the Authority. Simultaneously, it embedded an evolutionary approach whereby States agreed to work in good faith to establish a complete regulatory framework for activities in the Area, in line with the pace of development of those activities. That faith in the Convention and multilateralism guided the negotiation and adoption of three sets of regulations for exploration for different resources, bringing us to where we are today.

Thanks to the stability and predictability introduced by those regulations, the pace of development of activities in the Area has continued to increase throughout my tenure. I have had the honour to sign three new contracts for exploration with three new contractors since 2017, all of which were concluded in the manner and form provided under the Convention and the 1994 agreement. Another plan of work for exploration was approved this year, and I congratulate India on that achievement, even though that important development is not recognized in draft resolution A/79/L.37 before the Assembly today.

Many exploration contracts are now reaching maturity, with contractors expected to proceed to exploitation in line with the provisions of the Convention. That presents a challenge for States parties, which must collectively decide — through the Council of the Authority — how to balance the protection and preservation of the

marine environment with their interest in the exploitation of seabed mineral resources.

The Council's responsibility is to finalize the regulatory framework in a timely and responsible manner. That is the best guarantee for the effective protection of the marine environment and defending against unilateral approaches. Without the adoption of a rules-based regime for the exploitation of the mineral resources of the Area, the widely accepted and fundamental principles of the common heritage of humankind could be undermined. It is therefore critical to the integrity of the regime that the Council now complete the task before it.

Notwithstanding discussions by States concerning the exploitation of marine mineral resources in various other intergovernmental forums, the Area and its resources are the common heritage of humankind. Activities in the Area shall be organized, carried out and controlled by States parties to the Convention through the Authority. In that regard, the jurisdiction of the Authority is an exclusive one.

As I leave the Authority, I express satisfaction that I leave behind an institution that is fit for purpose and has navigated the challenges of an ever-changing international environment. I have strived to ensure that developing countries, especially the least developed, play a greater role in assisting the Authority to deliver its crucial mandate of ensuring that activities in the Area are conducted for the benefit of humankind as a whole.

Not everything I hoped for has been achieved. Regulations for the exploitation of marine mineral resources remain incomplete. A new strategic plan for the Authority, setting out a shared understanding of its mission and objectives, is overdue. The Economic Planning Commission is yet to be established. While discussed, work on the implementation of article 82 of the Convention has not been completed. The secretariat is not yet fully equipped or adequately resourced to manage the next phase of the Authority's existence. The responsibility for taking these forward and the consequences of failure lie with the members of the Authority.

I firmly believe that the Convention and its rules for the conduct of all activities in the ocean represent humankind's best hope for our relationship with the oceans and seas. I have no doubt, therefore, that the Authority will continue to grow in importance and stature. The adoption last year of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction further reinforces the Authority's mandate and functions as a central institution for global ocean governance and will no doubt bring added responsibilities.

Let me now extend my deep appreciation to the States parties for their constant support for the Authority's mandate and work. The active participation and constructive engagement of numerous delegations demonstrate the importance that States Parties place on protecting the integrity of the Convention and its implementing agreements.

I would also like to extend a special word of gratitude and appreciation to the Division for Ocean Affairs and the Law of the Sea for its constant cooperation and support over the years.

I also extend my thanks to the current and former judges of the Tribunal over the past 30 years. They have nurtured the delicate relationship between the Authority and the Tribunal as creatures of the Convention, and as colleagues and personal friends they have provided wisdom, support and advice.

My sincere gratitude also goes to the staff of the secretariat, whose commitment, integrity and dedication to this unique organization deserve recognition and

commendation. Their professionalism and resilience in the face of extreme political pressure reflect highly on their ability to diligently discharge their duties for the common good.

Finally, I extend special thanks to the Government and people of Jamaica. As long ago as the 1970s, that small island dared to have the ambition and vision to host an entirely new and complex international organization. Jamaica has been a warm and generous host to the Authority and its international staff, imbuing them with the same qualities of resilience, creativity, confidence and faith in multilateralism that we recognize in Jamaica itself.

In the words of Kofi Annan when he made his final speech to the General Assembly from this rostrum: "Together we have pushed some big rocks to the top of the mountain" (*A/61/PV.10, p. 3*). Some have rolled back down again but more remain at the top, and we have built a mountain. From that mountaintop, we can see what is possible and recognize the hopes and dreams of the architects of the Convention.

I thank all concerned for their support and I wish the Authority all the best for the future.

The Acting President: I now call on the observer of the International Tribunal for the Law of the Sea.

Ms. Chadha (International Tribunal for the Law of the Sea): It is an honour for me to address the General Assembly this year on behalf of the International Tribunal for the Law of the Sea (ITLOS). Allow me first to congratulate Mr. Yang on his election as President of the General Assembly. I wish him every success during his term of office.

At the request of the President of the Tribunal, who is unfortunately unable to be here today, I will report on the main judicial and organizational developments that have taken place at the Tribunal since the last meeting of the General Assembly in December 2023.

Before referring to substantive matters concerning the Tribunal, I must inform the Assembly, with deep regret, of the passing of a former judge of the Tribunal, Judge Tafsir Malick Ndiaye of Senegal, in March. Judge Ndiaye served as a member of the Tribunal from 1996 until 2020. He was involved, throughout his long, distinguished career, in the development of the law of the sea and the peaceful settlement of disputes. On behalf of the Tribunal, I wish to pay tribute to Judge Ndiaye for his important contribution to the work of the Tribunal.

Starting with our judicial work, this year the Tribunal delivered its historic advisory opinion on climate change and the law of the sea, adopted one order on provisional measures and saw developments in a further case. I will begin with the advisory opinion.

It bears recalling that, on 12 December 2022, the Commission of Small Island States on Climate Change and International Law transmitted to the Tribunal a request for an advisory opinion on two questions: what are the specific obligations of State parties to the United Nations Convention on the Law of the Sea, including under part XII, to, first, prevent, reduce and control pollution of the marine environment in relation to the deleterious effects that result or are likely to result from climate change, including through ocean warming and sea level rise, and ocean acidification, which are caused by anthropogenic greenhouse gas (GHG) emissions into the atmosphere; and secondly, protect and preserve the marine environment in relation to climate change impacts, including ocean warming and sea level rise, and ocean acidification?

In the proceedings, written statements from 34 States parties and nine intergovernmental organizations formed part of the case file. A public hearing was held from 11 to 25 September 2023, and I am pleased to inform the Assembly that delegations from 33 States parties and four intergovernmental organizations made oral statements in those historic proceedings. On 21 May 2024, the Tribunal delivered its unanimous advisory opinion. This is the first time that an international judicial body has identified States Parties' obligations to combat climate change within the framework of the United Nations Convention on the Law of the Sea.

In its advisory opinion, the Tribunal was mindful that "climate change is recognized internationally as a common concern of humankind". It noted that the questions posed to it necessarily had scientific aspects and, in that respect, relied on the reports of the Intergovernmental Panel on Climate Change, which were recognized by most of the participants in the proceedings as "authoritative assessments of the scientific knowledge on climate change". The Tribunal also underlined the relevance of external rules in interpreting the Convention, observing that external rules may be found in the extensive treaty regime addressing climate change. In the Tribunal's view,

> "coordination and harmonization between the Convention and external rules are important to clarify, and to inform the meaning of, the provisions of the Convention and to ensure that the Convention serves as a living instrument".

One of the key legal findings of the advisory opinion is the Tribunal's conclusion that,

> "anthropogenic GHG emissions into the atmosphere constitute pollution of the marine environment within the meaning of article 1, paragraph 1, subparagraph 4, of the Convention".

On that basis, the Tribunal proceeded to examine in great detail the relevant legal provisions and the ensuing obligations of States Parties under the Convention.

Importantly, the Tribunal held that, under article 194, paragraph 1, of the Convention,

> "States Parties to the Convention have the specific obligations to take all necessary measures to prevent, reduce and control marine pollution from anthropogenic GHG emissions and to endeavour to harmonize their policies in this connection".

It further held that,

> "[s]uch measures should be determined objectively, taking into account, inter alia, the best available science and relevant international rules and standards contained in climate change treaties such as the United Nations Framework Convention on Climate Change and the Paris Agreement, in particular the global temperature goal of limiting the temperature increase to 1.5°C above pre-industrial levels and the timeline for emission pathways to achieve that goal".

The Tribunal moreover stated that,

> "[t]he scope and content of necessary measures may vary in accordance with the means available to States Parties and their capabilities"

and that the necessary measures "include, in particular, those to reduce GHG emissions." In the context of marine pollution from anthropogenic GHG emissions,

> “States with greater means and capabilities must do more to reduce such emissions than States with less means and capabilities”.

In respect of the nature of that obligation, the Tribunal found that it is one of due diligence and that the standard of due diligence in that regard is stringent. According to the Tribunal, if a State fails to comply with that obligation under article 194, paragraph 1, international responsibility would be engaged for that State.

In that context, the Tribunal also addressed the relationship between the Convention and the Paris Agreement on Climate Change, finding that they are separate agreements with separate sets of obligations. Therefore, the obligation under article 194, paragraph 1, of the Convention would not be satisfied “simply by complying with the obligations and commitments under the Paris Agreement”. According to the Tribunal, the Paris Agreement complements the Convention and does not supersede it; it does not modify or limit the obligation under the Convention and is not *lex specialis* to the Convention.

As regards transboundary pollution, the Tribunal determined that under article 194, paragraph 2, of the Convention, States Parties have the specific obligation to,

> “take all measures necessary to ensure that anthropogenic GHG emissions under their jurisdiction or control do not cause damage to other States and their environment, and that pollution from such emissions under their jurisdiction or control does not spread beyond the areas where they exercise sovereign rights”.

Among its other conclusions, the Tribunal held that under article 192 of the Convention, States parties have,

> “the specific obligation to protect and preserve the marine environment from climate change impacts and ocean acidification [and that w]here the marine environment has been degraded, this obligation may call for measures to restore marine habitats and ecosystems.”

That obligation was also found by the Tribunal to be one of due diligence, the standard of which is stringent.

Although still fairly recent, the advisory opinion of the Tribunal has already been hailed as a landmark ruling that will serve to strengthen States parties’ obligations to prevent, reduce and control marine pollution from anthropogenic GHG emissions and to protect and preserve the marine environment from climate change and ocean acidification.

I will now briefly report on the two cases currently on our docket, the first being the *M/T “Heroic Idun” (No. 2) Case* (*Marshall Islands/Equatorial Guinea*). The dispute concerns the *M/T Heroic Idun*, a vessel flying the flag of the Marshall Islands, and its crew. By order of 27 April 2023, the Tribunal acceded to a request of the parties to form a special chamber of the Tribunal composed of five members to deal with the case. Following the filing of a memorial and a counter-memorial, the President of the Special Chamber authorized and fixed the time limits for the submission of a reply and a rejoinder, with the reply having been filed on 25 November 2024.

The other pending case is the “*Zheng He” Case* (*Luxembourg v. Mexico*). On 3 June 2024, Luxembourg instituted proceedings against Mexico before the Tribunal concerning a dispute regarding the detention of the *Zheng He*, a dredger flying the flag of Luxembourg. On 7 June 2024, Luxembourg submitted a request to the Tribunal for the prescription of provisional measures under article 290, paragraph 1, of the Convention. During a hearing held on 11 and 12 July 2024, Luxembourg requested

the Tribunal to prescribe several provisional measures, while Mexico sought the rejection of Luxembourg's request.

On 27 July 2024, the Tribunal delivered its order concerning the request for provisional measures. In its order, the Tribunal concluded that prima facie it had jurisdiction over the submitted dispute and that "the rights claimed by Luxembourg in the present case on the basis of article 131 of the Convention are plausible". Turning to the question of urgency in those proceedings, the Tribunal considered that,

> "there is at present no urgency, in the sense that there is no real and imminent risk of irreparable prejudice to the rights claimed by Luxembourg".

It found that,

> "the circumstances, as they now present themselves to the Tribunal, are not such as to require the exercise of its powers to prescribe provisional measures under article 290, paragraph 1, of the Convention".

By order dated 8 August 2024, the President of the Tribunal fixed the time limits for the filing of the memorial of Luxembourg and the counter-memorial of Mexico.

As members of the Assembly are aware, alongside its judicial work, the Tribunal is also active in the field of capacity-building aimed at promoting and disseminating knowledge of the Convention, and in particular of the dispute settlement procedures enshrined in its part XV. In that respect, in September the Tribunal held the third ITLOS Workshop for Legal Advisers, sponsored by the Republic of Korea. The workshop was designed for legal advisers of Latin American and Caribbean States. The Tribunal's Nippon Programme, internship programme and the International Foundation for the Law of the Sea Summer Academy are likewise all efforts in that direction. I wish to thank the Ministry for Foreign Affairs of the People's Republic of China, the Republic of Korea, the Nippon Foundation and the Korea Maritime Institute for their commitment to the Tribunal's capacity-building programmes.

Finally, regarding organizational matters, I am happy to announce that, on 18 September, Ms. Ximena Hinrichs Oyarce was re-elected Registrar of the Tribunal, a position she has held since 2019.

On behalf of the Tribunal, I wish to thank the Secretary-General of the United Nations, the Legal Adviser and the Division for Ocean Affairs and the Law of the Sea of the Office of Legal Affairs for their continued cooperation and support.

The Acting President: We shall now proceed to consider draft resolutions A/79/L.37 and A/79/L.38.

I now give the floor to the representative of the Secretariat.

Mr. Nakano (Department for General Assembly and Conference Management): I have two oral statements to read out — one on draft resolution A/79/L.37, the other on draft resolution A/79/L.38. I will begin with A/79/L.37.

The present statement is made in the context of rule 153 of the rules of procedure of the General Assembly and has been distributed to member States.

Under the terms of paragraphs 333 and 335 of the draft resolution, the General Assembly, would decide to launch the fourth cycle of the Regular Process, to cover five years, from 2026 to 2030, and requests the Bureau, with the assistance of the Group of Experts and the secretariat, to develop a draft programme of work for the fourth cycle, on the basis of the possible outcomes and building blocks of the fourth cycle prepared by the Bureau and endorsed by the Ad Hoc Working Group of the Whole at its 21st meeting and taking into account lessons learned from the third cycle,

including, as appropriate, on the use of the Regular Process scientific outputs for informing decision- and policymaking at the national, regional and global levels, and to report to Member States in advance of the 22nd meeting of the Ad Hoc Working Group.

The General Assembly would also request the Secretary-General to prepare the resource requirements for the fourth cycle of the Regular Process on the basis of the draft programme of work for the fourth cycle, to be developed in the intersessional period by the Bureau, and to report to Member States in advance of the 22nd meeting of the Ad Hoc Working Group of the Whole.

With regard to the mandates contained in paragraphs 333 and 335 of the draft resolution, in the absence of modalities, it is not possible at the present time to estimate the potential cost implications of the requirements of the fourth cycle of the Regular Process. When the format, scope and modalities of the fourth cycle are determined, the Secretary-General would assess the budgetary implications and advise the General Assembly in accordance with rule 153 of its rules of procedures. Furthermore, once modalities are known, in accordance with established practice, the dates of the meetings of the fourth cycle would be determined in consultation with the Department for General Assembly and Conference Management.

In that regard, reference is made to paragraph 4 of resolution 69/250 and subsequent resolutions, the most recent of which is resolution 78/245 of 22 December 2023, in which the Assembly invited Member States to include in new legislative mandates adequate information on the modalities for the organization of conferences or meetings.

I now turn to draft resolution A/79/L.38. The present oral statement concerning draft resolution A/79/L.38 is made in the context of rule 153 of the rules of procedure and has been distributed to member States.

Under the terms of paragraphs 238 and 239 of the draft resolution, the General Assembly would request the Secretary-General to convene, with full conference services, without prejudice to future arrangements, a two-day workshop in the second half of 2026 in order to discuss the implementation of paragraphs 113, 117 and 119 to 124 of resolution 64/72; paragraphs 121, 126, 129, 130 and 132 to 134 of resolution 66/68; and paragraphs 181, 203 to 207, 209, 210, 213, 215 to 222 and 257 of resolution 77/118, and to invite States, the Food and Agriculture Organization of the United Nations (FAO) and other relevant specialized agencies, funds and programmes, subregional and regional fisheries management organizations and arrangements, other fisheries bodies, other relevant intergovernmental bodies, relevant non-governmental organizations and relevant stakeholders, in accordance with United Nations practice, to attend the workshop.

The Assembly would also request the Secretary-General to prepare a report similar in scope, length and detail to his report to the General Assembly at its seventy-fifth session, in cooperation with the FAO and with the assistance of an expert consultant to be hired by the Division to provide information and analysis on relevant technical and scientific issues to be covered in the report, for consideration by the Assembly at its eighty-first session, on the actions taken by States and regional fisheries management organizations and arrangements in response to paragraphs 113, 117 and 119 to 124 of resolution 64/72, paragraphs 121, 126, 129, 130 and 132 to 134 of resolution 66/68 and paragraphs 181, 203 to 207, 209, 210, 213, 215 to 222 and 257 of resolution 77/118, and to invite States and regional fisheries management organizations and arrangements to consider making such information publicly available.

The requests contained in paragraphs 238 and 239 of the draft resolution would constitute additional workloads for the Department for General Assembly and Conference Management (section 2), the Office for Legal Affairs (section 8), the Department for Global Communications (section 28), and the Office of Information and Communications Technology (section 29 (c)), as follows,

For the Department for General Assembly and Conference Management (section 2), additional resource requirements estimated at $71,300, excluding staff assessment, would be required for 2026. The implementation of the mandate in support of the two-day workshop would require interpretation in all six languages for two days, comprising four meetings, in New York and would constitute an addition to the meetings workload of the Department in 2026. With regard to documentation services, the requirements of translation in all six languages of the United Nations of one pre-session document with a word count of 17,000 words would constitute an addition to the documentation workload of the Department in 2026.

For the Office of Legal Affairs (section 8), additional resource requirements estimated at $18,000 would be required for 2026 for consultations to conduct research and support for the drafting of the report of the Secretary-General on the overview of the impact of bottom fisheries on vulnerable marine ecosystems and the long-term sustainability of deep-sea fish stocks.

For the Department of Global Communications (section 28), additional resource requirements, estimated at $1,200, would be required for 2026 for the provision of webcasting services for the two-day workshop.

For the Office of Information and Communications Technology (section 29 (c)), additional resources, estimated at $5,800, would be required for 2026 for information technology servicing during the two-day workshop, comprising four meetings. In accordance with established practices, the date of the two-day workshop in 2026 would be determined in consultation with the Department for General Assembly and Conference Management.

Accordingly, should the General Assembly adopt draft resolution A/79/L.38, additional resource requirements reflected in the paragraphs read above would be included in the proposed programme budget for 2026 for the consideration of the General Assembly.

I shall now address the additional co-sponsorship for both draft resolutions.

Since the submission of draft resolution A/79/L.37, and in addition to the delegations listed in the document, the following countries have also become co-sponsors: Angola, Antigua and Barbuda, the Bahamas, Bangladesh, Barbados, Brazil, Chile, the Congo, Cuba, the Democratic Republic of the Congo, Djibouti, Dominica, Ecuador, Equatorial Guinea, France, Georgia, Ghana, Grenada, Guinea, Guyana, Jamaica, Jordan, Kiribati, Lebanon, Malawi, Maldives, Marshall Islands, Mauritania, Mauritius, Montenegro, Morocco, Myanmar, Namibia, Nauru, Nepal, Nigeria, North Macedonia, Panama, Papua New Guinea, the Republic of Moldova, Rwanda, Saint Vincent and the Grenadines, San Marino, Seychelles, Sierra Leone, Somalia, South Africa, Sri Lanka, the State of Palestine, Tonga, Trinidad and Tobago, Uganda, Ukraine, the United States of America, Vanuatu and Zambia.

Since the submission of draft resolution A/79/L.38, and in addition to the delegations listed in the document, the following countries have also become co-sponsors: Albania, Bosnia and Herzegovina, the Congo France, Maldives, Marshall Islands, Papua New Guinea, Poland, Saint Vincent and the Grenadines, Thailand, Ukraine, the United States of America and Vanuatu.

The Acting President: The Assembly will now take a decision on draft resolution A/79/L.37, entitled “Ocean and the law of the sea”.

A recorded vote has been requested.

A recorded vote was taken.

In favour:

Albania, Algeria, Andorra, Angola, Antigua and Barbuda, Argentina, Armenia, Australia, Austria, Azerbaijan, Bahamas, Bahrain, Bangladesh, Barbados, Belarus, Belgium, Belize, Bolivia (Plurinational State of), Bosnia and Herzegovina, Brazil, Brunei Darussalam, Bulgaria, Cabo Verde, Cambodia, Cameroon, Canada, Central African Republic, Chad, Chile, China, Congo, Costa Rica, Croatia, Cuba, Cyprus, Czechia, Democratic Republic of the Congo, Denmark, Djibouti, Dominica, Dominican Republic, Ecuador, Egypt, Equatorial Guinea, Eritrea, Estonia, Fiji, Finland, France, Gabon, Georgia, Germany, Greece, Grenada, Guatemala, Guinea, Guyana, Haiti, Honduras, Hungary, Iceland, India, Indonesia, Iraq, Ireland, Israel, Italy, Jamaica, Japan, Jordan, Kazakhstan, Kenya, Kiribati, Kuwait, Lao People’s Democratic Republic, Latvia, Lebanon, Liechtenstein, Lithuania, Luxembourg, Madagascar, Malaysia, Maldives, Malta, Marshall Islands, Mauritania, Mauritius, Mexico, Micronesia (Federated States of), Monaco, Mongolia, Montenegro, Morocco, Mozambique, Myanmar, Namibia, Nepal, Netherlands (Kingdom of the), New Zealand, Nicaragua, Norway, Oman, Pakistan, Palau, Panama, Papua New Guinea, Paraguay, Peru, Philippines, Poland, Qatar, Republic of Korea, Republic of Moldova, Romania, Russian Federation, Rwanda, Saint Lucia, Saint Vincent and the Grenadines, Samoa, San Marino, Saudi Arabia, Senegal, Serbia, Seychelles, Sierra Leone, Singapore, Slovakia, Slovenia, Somalia, South Africa, Spain, Sri Lanka, Suriname, Sweden, Switzerland, Thailand, Timor-Leste, Togo, Trinidad and Tobago, Tunisia, Tuvalu, Uganda, Ukraine, United Arab Emirates, United Kingdom of Great Britain and Northern Ireland, United Republic of Tanzania, United States of America, Uruguay, Vanuatu, Viet Nam, Yemen, Zimbabwe

Against:

Türkiye

Abstaining:

Colombia, El Salvador

Draft resolution A/79/L.37 was adopted by 152 to 1, with 2 abstentions (resolution 79/144).

[Subsequently, the delegations of Portugal and Saint Kitts and Nevis informed the Secretariat that they had intended to vote in favour.]

The Acting President: The Assembly will now take a decision on draft resolution A/29/L.38, entitled “Sustainable fisheries, including through the 1995 Agreement for the Implementation of the Provisions of the United Nations Convention on the Law of the Sea of 10 December 1982 relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks, and related instruments”.

May I take it that the Assembly decides to adopt draft resolution A/79/L.38?

Draft resolution A/79/L.38 was adopted (resolution 79/145).

The Acting President: In view of the lateness of the hour, statements in explanation of vote or position will be heard at a later date, to be announced.

Several delegations have asked to speak in exercise of the right of reply. May I remind members that statements in the exercise of the right of reply are limited to 10 minutes for the first intervention and to 5 minutes for the second intervention and should be made by delegations from their seats.

Ms. Arumpac-marte (Philippines): I wish to refer to the statement made by one delegation referring to the South China Sea arbitration award. The award and the United Nations Convention on the Law of the Sea are the twin anchors of the Philippines policy and actions in the South China Sea. The award, issued unanimously, is an affirmation of the Convention and its dispute resolution mechanisms.

The Arbitral Tribunal ruled that it had jurisdiction to consider the dispute on historic rights and source of maritime entitlements in the South China Sea and that claims to resources within the sea areas falling within the nine-dash line had no basis in law and are without legal effect. The Tribunal concluded that the United Nations Convention on the Law of the Sea (UNCLOS) comprehensively allocates maritime zones and upheld the Philippines sovereign rights and jurisdiction in its maritime zones, including in our exclusive economic zone. It affirmed that certain actions within the Philippines exclusive economic zone violated the Philippines sovereign rights and were thus unlawful. We urge China to comply with the award.

The Philippines reaffirms that the recent enactment of laws on maritime zones and archipelagic sea lanes reinforces the alignment of our domestic laws with UNCLOS. China's response of announcing baselines around Bajo de Masinloc, or Scarborough Shoal, and depositing with the Secretary-General a chart of baselines of territorial sea, as well as a list of geographical coordinates in relation thereto, violates UNCLOS and international law and undermines the rules-based international order that it underpins.

Bajo de Masinloc, situated off the western coast of our Luzon Island, has always been an integral part of the territory of the Philippines. It is only the Philippines, in the exercise of sovereignty, that has the right to establish the baselines and the breadth of territorial sea around Bajo de Masinloc, in line with UNCLOS.

China's use of straight baselines is illegal under UNCLOS. The Arbitral Tribunal explained that, under article 7 of UNCLOS, it provides for the application of straight baselines only in localities where the coastline is deeply indented and cut in two, or if there is a fringe of islands along the coast in its immediate vicinity. Those conditions do not include the situation of Bajo de Masinloc in relation to China.

It is not surprising for China to make a gross distortion of United Nations Convention on the Law of the Sea when in disregard of it. China even falsely asserts a right to draw archipelagic baselines, even though it is not an archipelagic State, as envisioned in article 46 and 47 of the Convention.

On the claim that it can draw baselines, including so-called outlying archipelagos, under general international law, even assuming *arguendo*, there is simply no basis under customary law in the absence of general and consistent State practice, as is clearly demonstrated by the survey of relevant State practice. We urge China to comply with UNCLOS, including its provisions on baselines, which are comprehensive in scope. There is no recourse to general international law on matters comprehensively covered by UNCLOS.

We underscore the Tribunal's finding that Bajo de Masinloc is a rock under article 121 of the Convention and therefore has no exclusive economic zone or continental shelf. Further, the Philippines must emphasize that the tribunal found that Bajo de Masinloc has been a traditional fishing ground for fishermen of many

nationalities, including Filipinos, and therefore China's interference in artisanal fishing in the area is unlawful and violates international law.

Compliance with international law, including the award and UNCLOS, which represents a delicate balance of the rights and obligations of all States parties, is key to ensuring global and regional peace and the fair and sustainable use of the oceans. We urge China to comply with international law.

Mr. Li Linlin (China) (*spoke in Chinese*): In response to the statement just made by the representative of the Philippines, we reject that statement. On many occasions, we have elaborated on our position on the South China Sea. That position is consistent and clear. The South China Sea arbitration case is in essence a territorial and maritime delimitation issue. Territorial issues do not fall within the scope of the United Nations Convention on the Law of the Sea.

China has dismissed its jurisdiction over maritime delimitation in accordance with the Convention and so the Arbitral Tribunal has no competence to deal with the aforementioned arbitration matters. The Arbitral Tribunal has twisted the interpretation of the Convention, disregarded relevant customary international law, totally denied historical rights, misidentified the status of the islands and reefs and made the award illegal, invalid and null. Under the criteria adopted by the Tribunal, many countries would have lost their maritime rights and interests. Such an erroneous decision cannot be supported by the international community.

The Philippines' maritime zone law attempts to incorporate islands that do not belong to the Philippines into its own jurisdiction, reinforcing the illegal claims of the Philippines in the South China Sea, seriously infringing upon China's territorial sovereignty and maritime rights and interests, and contravening the Charter of the United Nations.

The Philippines' archipelagic sea lane law contains discriminatory provisions restricting the rights of other countries, attempts to restrict the right of navigation and overflight of other countries in the Philippines archipelago, in contravention of the provisions of the International Maritime Organization on prior consultations. The Philippines cannot use so-called domestic law to counter its international obligations.

Huangyan Dao is an integral part of Chinese territory. On 10 November, the Chinese Government, in accordance with the Convention and Chinese maritime law, delimited and published the baseline. The Chinese Government has acted lawfully to reinforce maritime governance in line with international law and international practice.

We reject the Philippines' hype around the issue of the South China Sea in the United Nations. It is not helpful to the resolution of that problem. We call upon the Philippines to return to the track of consultation and negotiation, which is the right track. Through dialogue and consultation, we can manage our disputes and differences and work jointly to safeguard peace and stability in the South China Sea.

Ms. Arumpac-marte (Philippines): Allow me to reaffirm that the United Nations Convention on the Law of the Sea (UNCLOS) is the legal framework within which all activities in the oceans and seas must be carried out; it is the constitution of the oceans. The 2016 South China Sea arbitral award is a testament of the Philippines' unwavering commitment to the rule of law and the peaceful settlement of disputes. The award reinforces the dispute-settlement mechanisms under UNCLOS and the Convention itself.

Over the years, the Philippines has continued to demonstrate its commitment to peace, even in the face of unlawful actions that have caused serious incidents in the South China Sea, without ever diminishing our resolve to protect and promote our

people's interests and the full and responsible enjoyment of our legally settled maritime entitlements and their accompanying rights and jurisdiction. That determination has only been strengthened by the broadening affirmation of the legal value of the award as a positive and legitimate source of international law. We are encouraged by the expressions of support made by other States to confirm the final and binding status of the award, including the Group of Seven's reaffirmation that it is a significant milestone and a useful basis for the peaceful management and resolution of differences at sea.

The Philippines also welcomes the recent advisory opinion on climate change issued by the International Tribunal for the Law of the Sea, which cites the South China Sea arbitral award in key parts of the ruling, with multiple States or groups of States referencing the award as legal authority in their respective oral and written statements, underscoring its unassailable status as part of the corpus of international law. The award is a reaffirmation of the Convention and protects our rights as a coastal State and seafaring people.

Every effort to secure our legitimate interests in our maritime domain is a testament to the determination and courage of the Filipino people, demonstrating our vision of peace and stability. With our national interests, sovereignty and sovereign rights in mind, the Philippines will move forward to chart a course anchored in peace, security and prosperity in our region. Once again, we urge China to comply with international law, specifically the South China Sea arbitral award and UNCLOS.

Mr. Li Linlin (China) (*spoke in Chinese*): On the South China Sea arbitral case, we have a clear position. We regret the repeated hyping of the issue by the Philippines. The South China Sea arbitral case was unilaterally and unlawfully initiated by the Philippines. It has the veil of law and is essentially political provocation. China does not participate in or accept the arbitral case and does not recognize the so-called award. We act accordingly for the precise purpose of upholding the authority and integrity of the international law of the sea, including the United Nations Convention on the Law of the Sea.

Just now, the representative of the Philippines mentioned the support of countries, including members of the Group of Seven (G-7). We would ask whether those countries' maritime claims meet the standards of the arbitral award or case. Many countries, including members of the G-7, cite very small rocks as the basis of their claims to exclusive economic zones or to establish continental shelves. Do they really support the award? Even the Philippines' own legislation and maritime policies are not consistent with the award.

The award is a classic textbook example of the negative uses of international rule of law. The representative of the Philippines referred to the advisory opinion of the International Tribunal of the Law of the Sea. The advisory opinion was issued exclusively on the issue of the relationship between climate change and the oceans. Neither its authority, status or recognition have anything to do with the South China Sea arbitral case. We oppose the use by the Philippines of the advisory opinion to hype up the arbitral case. I also reiterate that the advisory opinion itself is not binding.

The Acting President: The Assembly has concluded this stage of its consideration of agenda item 75 and its sub-items (a) to (c).

The meeting rose at 1.30 p.m.